Sabita Rajesh Narang @ Sabita G. Raheja vs Sandeep Gopal Raheja And 33 Ors on 5 January, 2026

Author: Milind N. Jadhav

Bench: Milind N. Jadhav

2026:BHC-OS:5

NMS.

Ajay

IN THE HIGH COURT OF JUDICATURE AT BOMBAY
ORDINARY ORIGINAL CIVIL JURISDICTION

NOTICE OF MOTION NO. 1211 OF 2014
IN
SUIT NO. 777 OF 2014

Sabita Rajesh Narang .. Applican
IN THE MATTER OF:
Sabita Rajesh Narang (Nee Sabita G. Raheja) .. Plaintif
Versus
Sandeep Gopal Raheja and Ors. Defenda

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Mr. Kevic Setalvad, Senior Advocate a/w, Mr. Jehan Lalkaka, Ms. Manaswi Agrawal, Ms. Salomi Kalwade, Mr. Vishal Latange, Advocates i/b Meraki Chambers for Plaintiff.
Mr. Darius Khambata, Senior Advocate a/w, Ms. Nishtha Gupta, Mr. Vivek A. Vashi, Alya Khan, Zahra Padamsee, Ms. Riya Thakkar and Saumya M. Saurastri, Advocates i/b Mr. Vivek A. Vashi for Defendant No.1.
Dr. Birendra Saraf, Senior Advocate a/w, Mr. Kushal Amin, Mr. Vivek A. Vashi, Advocates i/b Mr. Vivek A. Vashi for Defendant No.2.
Mr. Karl Tamboly, Advocate i/b Mr. Vivek A. Vashi for Defendant Nos.3 and 4.
Mr. Aditya Mehta a/w, Ms. Etika Srivastava, Ms. Rakshita Singh, Advocates i/by Rashmikant and Partners for Defendant No.5.
Mr. Vikram Nankani, Senior Advocate a/w, Mr. Hrushi Narvekar, Advocate i/by Ms. Hansa Advani for Defendant Nos.7 to 10.
Mr. Yash Momaya, Advocate i/b Ms. Hansa Advani for Defendant Nos.11 to 15, 17 to 19, 22, 24 and 25.
Mr. Sarosh Bharucha, Advocate i/b Ms. Madhu Hiraskar for Defendant Nos.27 to 30.
Mr. Aseem Naphade, Advocate i/b Ms. Hansa Advani for Defendant Nos.31 and 32.
Mr. Tushad Kakalia, Advocate i/b Ms. Vijay Kakwani for Defendant Nos.33 and 34.
None appears for Defendant Nos.6, 16, 20, 21, 23 and 26.

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CORAM : MILIND N. JADH
DATE : JANUARY 05, 2026

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JUDGMENT:

1. Heard Mr. Setalvad, learned Senior Advocate for Plaintiff; Mr. Khambata, learned Senior Advocate for Defendant No.1; Mr. Saraf, learned Senior Advocate for Defendant No.2; Mr. Tamboly, learned Advocate for Defendant Nos.3 and 4; Mr. Mehta learned, Advocate for Defendant No.5; Mr. Nankani, learned Senior Advocate for Defendant Nos.7 to 10; Mr. Momaya, learned Advocate for Defendant Nos.11 to 15, 17 to 19, 22, 24 and 25; Mr. Bharucha, learned Advocate for Defendant Nos.27 to 30; Mr. Naphade, learned Advocate for Defendant Nos.31 and 32 and Mr. Kakalia, learned Advocate for Defendant Nos.33 and 34 at length.

2. Pleadings in Notice of Motion No.1211 of 2014 seeking interim reliefs are completed upto Sur-Rejoinder stage.

3. Notice of Motion is heard and determined finally by this order.

4. Notice of Motion seeks interim reliefs as follows:-

> "a. That pending the hearing and final disposal of the present Suit, this Hon'ble Court be pleased to restrain Defendants and in particular Defendant Nos. 1 and 2 from excluding /obstructing the Plaintiff from exercising and protecting her rights including in the joint management and control of the properties, assets and businesses of the Gopal Raheja including those held by and through the instrumentality of the Defendant Nos. 7 to 19 and 21 to 23 and 27 to 32 and interest in 20 and 24 to 26 Companies and Entities; b. That pending the hearing and final disposal of the present Suit, this Hon'ble Court be pleased to appoint an Administrator for the management and control of the properties, assets and running of the businesses of the Gopal Raheja Group including those held by and through the instrumentality of the Defendant Nos. 7 to 19 and 21 to NMS.1211.2014+.doc 23 and 27 to 32 and interest in 20 and 24 to 26 Companies and Entities till such time that the partition is implemented; c. That pending the hearing and final disposal of the present Suit, this Hon'ble Court be pleased to pass an order of injunction restraining the Defendants by themselves or through their servants, agents, officers or employees from in any manner selling, transferring and/or creating any encumbrance or third party rights in respect of any of the properties, assets and businesses of the Gopal Raheja Group including those held by and through the instrumentality of the

Defendant Nos. 7 to 19 and 21 to 23 and 27 to 32 and interest in 20 and 24 to 26;

d. That pending the hearing and final disposal of the present Suit, this Hon'ble Court be pleased to pass an order of injunction restraining the Defendants by themselves or through their servants, agents, officers or employees from in any manner altering, selling, transferring and/or creating any encumbrance or third party rights in respect of any of the shares of the Defendant Nos. 7 to 19 and 21 to 23 and 27 to 32 and in 20 and 24 to 26;

e. That pending the hearing and final disposal of the present Suit, this Hon'ble Court be pleased to direct Defendants and in particular Defendant Nos. 1 and 2 to disclose on oath details and status of all the properties, assets and businesses of the Gopal Raheja Group; f. That pending the hearing and final disposal of the present Suit, this Hon'ble Court be pleased to stay all the acts, deeds and things unilaterally done taken by Defendants and in particular Defendant Nos. 1 and 2 in and from December 2011 including the illegalities set out in Exhibit "AAA" post the demise of late Gopal L. Raheja;"

5. To determine and adjudicate the Notice of Motion following relevant facts are necessary for consideration:-

5.1. Lachmandas Raheja, alongwith his wife and other family members migrated to India during partition in the year 1947. In the year 1956, his son Gopal L. Raheja joined him and his uncles, Bhagwandas and Girdharidas Raheja in the real estate business.

Thereafter, in the year 1962 Chandru L. Raheja, brother of Gopal L. Raheja joined the family business. In the year 1966, Lachmandas Raheja separated from his brothers, Bhagwandas and Girdharidas Raheja and continued business with this sons, Gopal L. Raheja and NMS.1211.2014+.doc Chandru L. Raheja under the brand name "K Raheja Group". In the year 1972, Suresh L. Raheja another son of Lachmandas Raheja joined the family business. There was a fourth son Kishore L. Raheja who joined and separated in 1991.

5.2. Lachamandas Raheja passed away on 21.06.1983. On 31.10.1987, Suresh L. Raheja separated his business from his brothers by way of Family Arrangement. After 1987 Gopal L. Raheja and Chandru L. Raheja continued business under the name "K Raheja Group" while Suresh L. Raheja carried on business separately under the brand name of "K. Raheja Developers" which is now known as "Raheja Universal". In the year 1992, Defendant No.1 who is brother of Plaintiff and son of Gopal L. Raheja completed his diploma in Architecture and joined the business. During the period 1995-1996 'Gopal L. Raheja' and 'Chandru L. Raheja' agreed to separate their businesses. All assets, businesses and properties jointly held by them under K. Raheja Group were divided by way of a Family Arrangement recorded through four Arrangements dated May-1995, 05.04.1996, 16.11.1996 and 09.12.1996 exhibited to the Suit Plaint as Exhibits C1, C2, C3 and C4. It was agreed that the assets would be divided equally between the two groups on a 50:50 share basis. Pursuant thereto,

blocks of businesses and assets handled by them were created and allocated into 2 sets and parties agreed to execute documents to give effect to the distribution by giving up cross holdings in the other set.

NMS.1211.2014+.doc 5.3. Summary Suit No.633 of 2000 was filed on 08.12.1999 by Gopal L. Raheja Group against Chandru L. Raheja Group for recovery of Rs.9 Crores alongwith interest being the differential amount between the 2 sets as per the Family Arrangement of 1995-1996. In 2005 the Hindu Succession (Amendment) Act, 2005 came into force and under the said amendment, daughters of coparceners were recognized as coparceners by birth. Around the period 2005 - 2006, Gopal L. Raheja made some protem change in the ostensible shareholding structure pursuant to certain apprehensions and insecurity expressed by Defendant No.1 that the Plaintiff and Defendant No.5 and their husbands would influence Gopal L. Raheja and sideline Defendant No.1. Transfers of shareholding took place between 2005 - 2007 from Plaintiff and Defendant Nos.2 to 4. Disputes arose for the first time on 01.09.2011 when Gopal L. Raheja proposed division of assets to which Defendant No.1 allegedly did not cooperate. It is alleged that between September 2011 to 09.01.2012, Defendant No.1 allegedly took steps to isolate Gopal L. Raheja including restricting his access to his residence and office. On 11.01.2012, Gopal L. Raheja addressed letter to Defendant Nos.1, 2 and 33 recording events which transpired i.e. changing of lock of office cabin and cupboards therein. In this letter he recorded that all operations of Defendant Nos.7 to 32 should be jointly executed by Gopal L. Raheja and Defendant No.1 and he alongwith Plaintiff and NMS.1211.2014+.doc Defendant No.5 revoked the Power of Attorney given to Defendant No.1 and insisted that Defendant No.33 stopped attending office and be withdrawn as Director and authorised signatory from all Gopal L. Raheja Group Companies.

5.4. On 12.01.2012, Gopal L. Raheja discovered through ROC records that Defendant No.1 had appointed Defendant Nos.33 and 34 as Additional Directors of the Group Companies without his consent. On 28.01.2012, Defendant No.1 in reply to letter dated 11.01.2012 propounded the 1992 oral Family Arrangement of the Gopal L. Raheja Group having been acted upon the years wherein it was decided that Defendant No.1 will be the sole beneficiary of the Group assets; that he would take over the complete charge of business despite Gopal L. Raheja continuing to remain in business; that sisters of Defendant No.1 namely Plaintiff and Defendant No.5 would exit from the business and on demise of Gopal L. Raheja his shares would formally be transferred in the name of Defendant No.1.

5.5. On 28.02.2012, Gopal L. Raheja in his response to the above letter denied existence of any such oral arrangement and alleged that Defendant No.1 was taking undue advantage of his fiduciary position since shares were already transferred to Defendant No.1 as an interim measure on his assurance that he would abide by Gopal L. Raheja's decision for distribution of the assets of Gopal L. Raheja Group as he NMS.1211.2014+.doc decided. On 01.06.2012 Gopal L. Raheja proposed division of the group assets in specific proportions and assured further distribution. However settlement efforts failed in August - September 2012 and on 18.09.2012 Gopal L. Raheja filed Suit No.2366 of 2012 seeking declaration and specific performance of the division of businesses and assets proposed by him. Ad-interim order was passed on 24.09.2012 restraining further actions subject to Court orders. Subsequently on 16.10.2012, Affidavit-in-Reply was filed. It was Plaintiff's case in her reply dated 27.05.2013 to Defendant No.1's letter that Defendant No.1 held shares only in fiduciary

capacity and the 1995-1996 Family Arrangement was valid and binding. On 25.01.2014 Arbitral Award was passed by the learned Arbitrator Justice B. N. Srikrishna in Arbitration proceedings between Gopal L. Raheja Group and Chandru L. Raheja Group.

5.6. Pending hearing of Notice of Motion No. 2261 of 2012 in Suit No.2363 of 2012 (filed by Gopal L. Raheja) and hearing on preliminary issue raised by Defendant Nos.1 to 4 under Section 9A of the Code of Civil Procedure, 1908 (for short 'CPC') Gopal L. Raheja passed away on 18.03.2014. It is Plaintiff's case that within a period of six days thereafter i.e. commencing from 24.03.2014 onwards Defendant No.1 unilaterally initiated steps for transmission of shares standing jointly in his and Gopal L. Raheja's name in his sole name without consent or concurrence of Plaintiff or Defendant No.5. On NMS.1211.2014+.doc 14.04.2014 in continuation of her earlier correspondence dated 25.03.2014 Plaintiff addressed a detailed letter to Defendant No.1 asserting that she continued to have an equal and undivided share in the assets and businesses of the Gopal L. Raheja Group of Companies in terms of the 1995-1996 Family Arrangement. Plaintiff asserted that Defendant No.1 held shares and Directorship in the Group Companies in a fiduciary capacity and in trust for members of the Gopal L. Raheja Group and denied existence of any oral Family Arrangement of 1992 propounded by Defendant No.1 which was stated to be false and contrary to law. Plaintiff called upon Defendant No.1 to fix a date and time to jointly discuss and undertake steps for management and control of the Group Companies and assets in accordance with the 1995-1996 Family Arrangement. By reply dated 25.04.2014 Defendant No.1 denied Plaintiff's claims and contended that the alleged real oral Family Arrangement of 1992 was fructified over the years and was binding on all parties. Defendant No.1 asserted that all shares vested absolutely in him and/or Defendant Nos.2 to 4; that he and Defendant Nos.2 to 4 were the beneficiaries of the Gopal L. Raheja Group assets and Plaintiff was neither a shareholder nor entitled to any share therein as she had received her reciprocal benefit. It was contended that all shares earlier standing in Plaintiff's name were already transferred to Defendant Nos.1 and 2 to 4 resulting in her complete exit from the Group Companies and that Plaintiff and Defendant No.5 NMS.1211.2014+.doc continued as Directors in some Companies only as a matter of convenience. On 28.04.2014 Defendant No.1 contended that transmission of shares was governed by Articles of Association of the respective Companies and accordingly they were transmitted to his name by following the due process of law.

5.7. From 29.04.2014 correspondence was exchanged between Plaintiff and Defendant No.1 with assertions and denials. On 16.06.2014 Defendant No.1 without knowledge of Plaintiff filed Chamber Order No.399 of 2014 in Summary Suit No. 633 of 2000 seeking substitution of her name in place of Gopal L. Raheja claiming to act as representative of Gopal L. Raheja and Karta of Gopal Lachmandas HUF. On the same day i.e. 16.06.2014, Defendant Nos.27 to 30 Companies convened Extraordinary General Meetings at the instance of Defendant No.1 wherein Resolutions were passed for removal of Plaintiff and Defendant No.5 as Directors. By reply dated 21.07.2014 to Plaintiff's letter dated 18.07.2014 Defendant No.1 reiterated that objections and reservations raised by the Plaintiff were of no consequence and that he intended to avail credit facilities amounting to Rs.391 Crores against charge of properties belonging to Defendant No.9 Group Company. On 01.08.2014 the present suit was filed by Plaintiff. On the same date the present Notice of Motion was also filed.

NMS.1211.2014+.doc 5.8. On 27.10.2014 Defendant No.1 filed Perjury Petition No.2 of 2014 against Plaintiff, inter alia seeking dismissal and/or rejection of the present Suit and Notice of Motion No.1211 of 2014. This Petition is pending. On 08.11.2014, Defendant Nos.1 to 4 filed a limited Affidavit-in-Reply to present Notice of Motion raising preliminary issues under Section 9A of the CPC, raising issues of limitation and bar of transaction under the Benami Transactions Act. Pending a reference admitted on 17.08.2015 before a larger bench of the Supreme Court the present Suit was dismissed under Section 9A of the CPC by Order dated 11.09.2015 holding that issues raised were matters of evidence and Plaintiff had chosen not to lead any evidence. On 07.10.2015 Plaintiff filed Appeal No.517 of 2015 challenging the said order dated 11.09.2015.

5.9. Appeal was admitted and subsequently by judgment dated 04.10.2019 the Division Bench of this Court allowed the Appeal and restored the Suit and the Notice of Motion. On 11.07.2023, the above Division Bench Order was upheld and Special Leave Petition filed by Defendant Nos.1 to 4 was dismissed by Supreme Court. On 31.07.2023 Defendant Nos.1 to 4 filed Interim Application (Lodging) No. 20871 of 2023 under Order VII Rule 11 of CPC seeking rejection of Suit Plaint on grounds which were already raised and rejected by the Division Bench in Appeal and Supreme Court. By Order dated 10.06.2024 passed by this Court (Coram: Manish Pitale, J.), Interim Application NMS.1211.2014+.doc (Lodging) No.20871 of 2023 was dismissed with costs of Rs.2,00,000/- imposed on Defendant Nos.1 to 4 and hearing of Suit was expedited. Written Statement is not filed. Writ of Summons is not served on Defendants. At the outset, before hearing of this Notice of Motion on the suggestion of Court Defendant Nos.1 to 4 agreed to filed their Written Statement within 2 weeks but Plaintiff's instructions were to press the Application for interim reliefs. Before I consider and state the submissions made by the respective Advocates, it is necessary to place on record that there are following four (4) other civil proceedings pending between the parties hereto in this Court qua the same cause of action and/or assets/properties on the basis of their pleaded substantive rights.

> (i) Suit No.2363 of 2012 was filed by Gopal L. Raheja (now prosecuted by Defendant No.5 as Plaintiff therein) for distribution and division of assets;
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> (ii) Testamentary Suit No.63 of 2015 is filed by Defendant No.1 propounding the Will dated 14.05.2017 of Gopal L. Raheja;
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> (iii) Testamentary Suit No.115 of 2015 is filed by Defendant No.5 for propounding the Last Will dated 12.01.2012 of Gopal L. Raheja; and
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> (iv) Suit No.103 of 2015 is filed by Defendant No.5 for Administration and protection of assets of Gopal L. Raheja's estate.

6. Mr. Setalvad, learned Senior Advocate for Plaintiff at the outset would submit that the Plaintiff being a coparcener in the Joint NMS.1211.2014+.doc Family Property of Gopal L. Raheja has invoked her substantive right as a coparcener in the present Suit proceeding seeking partition. He would submit that under paragraph No.210 of Mulla's Hindu Law - 24th Edition1 a "Joint Hindu Family" consist of all persons lineally descended from a common ancestor and includes their wives.

He would submit that a Hindu "Coparcenary" is a narrower body as compared to the Hindu Joint Family as it includes only those persons who acquire an interest in the joint or coparcenary property by birth. He would submit that such coparcenary is confined to the three generations of descent i.e. sons, grandsons and great-grandsons and after the amendment of 2005, daughters, grand-daughters and great- grand-daughters are now included.

6.1. He would submit that only sons and daughters vertically and laterally would constitute a coparcenary in a Joint Hindu Family. He would submit that wives of sons/brothers can be Members of the Joint Hindu Family but cannot be considered as coparceners as their right to share would only arise at the time of partition. In support of this submission he has referred to and relied upon the decision of this Court in the case of Uday Narendra Shah Vs. Narendra Amritlal Shah 2 and specifically on paragraph Nos.11 to 16 of the said decision. 1 Part I - Principles of Hindu Law; I. - Coparceners; Authored by Sir Dinshaw Fardunji Mulla. 2 2014(2) Mh.L.J.739 NMS.1211.2014+.doc 6.2. He would draw my attention to paragraph No.214 of the Mulla's Hindu Law - 24th Edition and would submit that essence of coparcenary lies in unity of ownership with coparcenary property vesting in the entire body of coparceners collectively. He would submit that as long as the Joint Family remains undivided no individual coparcener can predicate or claim his/her definite share in the property as the share of the coparcener fluctuates and enlarges by birth and death of the family members and only on partition the share becomes definite and until partition the right of coparceners are limited to common possession and enjoyment. He would submit that as per paragraph No.339 of the Mulla's Hindu Law - 24th Edition only on partition the respective share becomes a separate property and if an individual separating from his/her other coparceners continues joint with his own issues then the share allotted to him on partition shall retain the character of a coparcenary property qua such issue, who acquire an interest therein by birth. Hence, he would submit that in view of these settled legal principles and in this background Plaintiff being a coparcener of the Gopal L. Raheja Group of properties and Companies has a subsisting legal interest in the suit properties which he would urge the Court to protect pending adjudication of the Suit proceeding and grant her interim reliefs as prayed for. 6.3. He would submit that the Suit is not barred by Section 4(1) of the Prohibition of Benami Property Transactions Act, 1988 (for short NMS.1211.2014+.doc "Benami Transactions Act") as pleaded by Defendants since Plaintiff's case squarely falls within the exception carved out under Section 4(3)

(a) therein wherein the person in whose name the property is held is a coparcener in a Hindu Undivided Family and if such property is held for the benefit of the coparceners of the family then the bar under Section 4(1) would not apply. He would submit that Gopal L. Raheja, Plaintiff, Defendant Nos.1 and 5 are/were coparceners in the Gopal L. Raheja HUF (for short "HUF") and Defendant No.2 a Member of the said HUF and hence even though shares of Gopal L. Raheja Group Companies are held in name(s) of one or the other member(s) / coparcener(s) it does not automatically vest any definite right of that member(s) / coparcener(s) as shares are held by those Defendants ostensibly for and on behalf of members of the Group. In support of his above submission he has referred to and relied upon the decision of the Supreme Court in the case of C.I.T., Andhra Pradesh Vs. C.P. Sarathy Mudaliar3 and specifically on paragraph Nos.8 and 9 of the said decision.

6.4. He would submit that Defendant Nos.1 and 2 have admitted existence of the Gopal L. Raheja HUF in the 1995-1996 Family Arrangement. He would submit that upon Gopal L. Raheja's death in the Chamber Order No.399 of 2014 filed in Summary Suit No.633 of 2000 against Chandru L. Raheja Group, Defendant No.1 sought to 3 (1972) 4 SCC 531 NMS.1211.2014+.doc implead himself as Karta of the HUF. He would submit that this conduct and admission by Defendant No.1 constitutes a judicial admission under Section 58 of the Indian Evidence Act, 1872 which is binding on Defendant Nos.1 to 4 and operates as a waiver of proof and forms a foundation of the parties' rights. In support of this submission he has referred to relied upon the decision of the Supreme Court in the case of Nagindas Ramdas Vs. Dalpatram Ichharam alias Brijram and Ors.4 specifically on paragraph No.27 of the said decision. He has further referred to and relied upon the decision of the Full Bench of the Allahabad High Court in the case of Shri Ajodhya Pd. Bhargava Vs. Shri Bhawani Shankar Bhargava and Another5 and specifically on paragraph Nos.66 to 72, 77, 83 to 85, 95 and 106 of the said decision. 6.5. He would submit that in the year 2016 i.e. after filing of the Suit, the Benami Act was amended, inter alia, and an exception was carved out in Section 4(3)(a) and integrated into Section 2(9)(A)(i). He would submit that the scope of the amended provision is wider as it includes property held by a Member of the HUF and therefore shares held by Defendant Nos.1 to 4 for and on behalf of other members of Gopal L. Raheja Group continue to be protected under this statutory exception.

4 (1974) 1 SCC 242 5 1956 SCC OnLine All 131 NMS.1211.2014+.doc 6.6. He would submit that Plaintiff's case falls within the "fiduciary capacity" exception under Section 4(3)(b) of the Benami Act (as it stood at the time of filing of the Suit in 2014). He would submit that the statutory bar under Section 4(1) does not apply where property is held in a fiduciary capacity for another's benefit. He would submit that shares of Gopal L. Raheja Group Companies, though admittedly are standing in the names of Defendant Nos.1 to 4 and/or their nominees, they are held by them in a fiduciary capacity for the benefit of other members, including the Plaintiff. He would submit that the expression "fiduciary capacity" is of wide import, extending beyond formal trusteeship, and is recognized both before and after the 2016 amendment, thereby excluding the Plaintiff's case from the bar under Section 4(1) of the Benami Transactions Act. In support of this submission he has referred to and relied upon the decision of the Supreme Court and Delhi High Court in the case of Marcel Martins Vs. M. Printer and Ors.6 specifically on paragraph Nos.23 to 38 and 44 of the said decision and Neeru Dhir and Ors. Vs. Kamal Kishore Dhir and Ors.7 specifically on paragraph Nos.3, 20 to 25 of the said decision. He would submit that in that view of the matter Defendant Nos.1 to 4 cannot claim exclusive ownership of the shareholdings in Defendant Nos.7 to 32 and deny the right of the Plaintiff to participate and deal with the operations of the said entities which primarily belong to the 6 (2012) 5 SCC 342 7 2020 SCC OnLine Del 2506 NMS.1211.2014+.doc Gopal L. Raheja Group of Companies and Plaintiff being the Karta of the Gopal L. Raheja HUF being the eldest daughter post the demise of Gopal L. Raheja on 18.03.2014. He would submit that right of the Plaintiff is traced to the 1995-1996 Family Arrangement when the Gopal L. Raheja Group separated and carved out as the Gopal L. Raheja HUF comprising of Plaintiff, Defendant No.1, Defendant No.5 and Gopal L. Raheja himself and thus urge the Court to grant the interim reliefs.

6.7. In this regard he has relied upon the decision of the Supreme Court in the case of Vineeta Sharma Vs. Rakesh Sharma and Others8 and specifically on paragraph Nos.22 to 47 of the said decision and taken me through them painstakingly to buttress his submissions. 6.8. Mr. Setalvad in support of his submissions for seeking interim relief has further referred to and relied upon the following citations and decisions of Court:-

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i.     Manu Gupta Vs. Sujata Sharma9
               ii.    Tribhovandas Haribhai Tamboli Vs. Gujarat Revenue
                      Tribunal 10
               iii.   Revanasiddappa Vs. Mallikarjun 11
               iv.    Anjana Kumar Vs. Vivek Goel 12
               v.     Sandeep Kohli Vs. Vinod Kohli 13
               vi.    Chhotey Lal Vs. Jhandey Lal 14
               vii.   Mahavirprasad Badridas Vs. M S Yagnik 15
8    (2020) 9 SCC 1
9    2023 SCC Online Del 7722
10   1991 3 SCC 442
11   2023 10 SCC 1
12   2024 SCC Online Del. 4135
13   2016 SCC Online Del. 6533
14   AIR 1972 All 424
15   AIR 1960 Bom. 191 (DB)
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viii. Ram Laxman Sugar Mills Vs. CIT, Uttar Pradesh 16 ix. P.A.R. Ramaswamy Chettiar Vs. Srinivasa Iyer and Ors. 17 x. Commissioner of Income Tax, Assam, Tripura and Manipur Vs. Nand Lal Agarwal and Anr.18 xi. Adiveppa and Ors. Vs. Bhimappa and Anr.19 xii. N. Padmamma and Ors. Vs. S. Ramakrishna Reddy and Ors.20 xiii. Sri. Rabindra Mohan Senapati Vs. Sri. Budhiram Senapati and Ors.21 xiv. V. Anantha Raju and Anr. Vs. T.M. Narasimhan and Ors. 22 xv. Syed Dastagir Vs. T.R. Gopalkrishna Setty 23 xvi. Prasanta Kumar Sahu and Ors. Vs. Charulata Sahu and Ors.24 xvii. Gulabrao Maruti Bhagat Vs. Bhagwan Nana Bhagat and Ors.25 xviii. Raghunath Rai Bareja and Anr. Vs. Punjab National Bank and Ors.26 xix. Appalaswami Vs. Suryanarayanmurti 27 xx. State Bank of India Vs. Ghamandi Ram (Dead) Through Shri Gurbax Rai 28

7. Mr. Khambata, learned Senior Advocate appearing on behalf of Defendant No. 1, would oppose the Application and at the outset submit that the present Suit is not a suit filed for partition of the HUF property, nor does the Suit Plaint disclose any cause of action under the HUF or coparcenary law as argued by Plaintiff. He would submit that the Plaintiff has belatedly attempted to recast her case under the exception of Section 4(3)(a) of the Benami Transactions Act despite no foundational pleadings in the Suit Plaint.

16 MANU/SC/0176/1967 17 1936 43 LW 437 18 1965 SCC Online SC 214 19 (2017) 9 SCC 586 20 (2015) 1 SCC 417 21 2014 SCC Online Ori 219 22 (2021) 17 SCC 165 23 (1999) 6 SCC 337 24 (2023) 9 SCC 641 25 2001 (2) All MR 598 26 (2017) 2 SCC 230 27 1947 60 LW 412 28 AIR 1996 SC 1330 NMS.1211.2014+.doc 7.1. He would submit that Plaintiff has not pleaded in the Suit that the properties belong to the Gopal L. Raheja HUF or that she is a coparcener or Karta of the family. He would submit that HUF ownership argument is raised for the first time in 2023 during oral submissions in Appeal No.517 of 2015, over 11 years after the demise of Gopal L. Raheja on 18.03.2014. He would submit that the Suit Plaint as filed alleges that Defendant No.1 held shares and management in a fiduciary capacity for the Gopal L. Raheja Group of Companies. He would submit that Plaintiff has now abandoned these pleadings and impermissibly attempted to create a new case without amendment of the Suit Plaint.

7.2. He would submit that Plaintiff seeks interim reliefs after 11 years, despite seeking identical reliefs in Notice of Motion 1740 of 2017, Notice of Motion 1004 of 2018, and Interim Application No. 1 of 2020 in Appeal No.517 of 2015 which were never allowed by the Court, thus demonstrating lack of urgency and laches. He would submit that delay is rather attributable to Plaintiff's own conduct and her claim of she being kept out of Court is factually incorrect as she has been prosecuting various Suit proceedings in the interim. He would submit that Plaintiff's attempt to equate Gopal L. Raheja Group with the Gopal L. Raheja HUF is a complete afterthought unsupported by pleadings.

NMS.1211.2014+.doc 7.3. He would submit that Gopal L. Raheja Group's composition is inconsistent with the legal concept of a coparcenary, and Defendant Nos.3 and 4 daughters of Defendant No.1 and grand-daughters of Gopal L. Raheja who would be coparceners, are excluded. He would submit that the Plaint contains no prayer for declaration or partition of HUF or coparcenary property, reflecting deliberate omission. He would submit that the 1995-1996 Family Arrangement divided 2 family groups, not HUFs exclusively, as is evident from Exhibit C3 which is admittedly signed by multiple parties including Late Gopal L. Raheja and Defendant No.1.

7.4. He would submit that Plaintiff has suppressed Defendant No. 1's signature in Exhibit C-3, misleadingly projecting only Late Gopal L. Raheja as Karta. He would submit that such selective omission undermines Plaintiff's credibility and conduct and seeks to recast the nature of the 1995-1996 Family Arrangement. He would submit that references to "Karta" is only descriptive in Exhibit C3 and does not establish a case for HUF partition as assets are described as family- owned and quasi-partnership businesses by members of the 2 groups therein.

7.5. He would submit that the Plaint pleads a 3 year limitation period, not 12 years under Article 110 of the Limitation Act, 1963 further demonstrating that the Suit is not filed for HUF partition. He NMS.1211.2014+.doc would submit that even if the HUF existed under the 1995-1996 Family Arrangement, Plaintiff's share could not exceed 1/4th therein due to absence of Defendant Nos. 3 and 4 at the relevant time. He would submit that the Plaintiff's claim for a 1/4 th independent share itself contradicts her HUF partition theory.

7.6. He would submit that the definition of the Gopal L. Raheja Group is inconsistent throughout the Plaint, excluding minor coparceners Defendant Nos.3 and 4. He would submit that Plaintiff refers to Late Gopal L. Raheja as Head of the Group, with no meaningful reference to a Karta. He would submit that Plaintiff has failed to demonstrate how shares and assets vested in the HUF, misplacing reliance on Section 101 of the Indian Evidence Act, 1872, as the burden of proof lies on her to atleast prima facie prove the same. He would submit that transfers to non-coparceners completely belie the Plaintiff's claim that shares in the Group Companies were held for the HUF's benefit.

7.7. He would submit that transfers to Defendant Nos.2, 3, 4 and Companies pre and post 2005 amendment to the Hindu Succession Act demonstrate that HUF shares were minimal which is supported by the decisions and findings of the Supreme Court in the case of Vineeta Sharma (supra) and State Bank of India Vs. Ghamandi Ram (supra). He would submit that entries between 2001 to 2007 clearly distinguish NMS.1211.2014+.doc HUF shares from personal shares, consistent with the 1992 oral Family Agreement propounded by Defendant No.1 since it has been acted upon.

7.8. He would submit that Defendant No.1's consistent stance since 2014, including balance sheets showing no HUF shares, remains unchallenged by the Plaintiff. He would submit that the Suit is not founded on HUF or coparcenary property, as is evident from the Plaintiff's pleadings, admissions, and failure to rebut. He would submit that the Plaintiff has relied on pleadings of Gopal L. Raheja in Suit No. 2363 of 2012, wherein Gopal L. Raheja never claimed that the HUF had full ownership of the Group Companies. He would submit that Gopal L. Raheja's position was that only certain limited shares belonged to the HUF, distinct from his personal assets which is borne out by the 1995-1996 Family Arrangement wherein Gopal L. Raheja HUF is one of the six (6) co-sharers and signatory thereto on behalf of Gopal L. Raheja Group which admittedly includes a non-coparcener (Defendant No.2).

7.9. He would submit that the Plaintiff has suppressed affidavits of 25.10.2012 and 10.12.2012 (Rejoinder, later withdrawn) in which she has admitted the binding nature of the 1995-1996 Family Arrangement, undermining her current case, supported by the decision of hte Supreme Court in the case of S. P. Chengalvaraya Naidu Vs. NMS.1211.2014+.doc Jagannath (dead) by Lrs. & Ors.29, Ramjas Foundation & Anr Vs. Union of India30, and Prestige Lights Ltd. Vs. State Bank of India31. He would rely upon the decision of the Calcutta High Court in the case of Mohammed Seraj Vs. Adibar Rahaman Sheikh & Ors. 32 which holds that statements even in withdrawn pleadings can be treated as admissions.

7.10. He would submit that Plaintiff's reliance on the purported 01.06.2012 division is inconsistent, arbitrarily asserting a 25% share without financial support. He would submit that in Testamentary proceedings filed by the Plaintiff, she has acted only as a legal heir under the Hindu Succession Act, 1956, never as coparcener or Karta. He would submit that suppression of material admissions and prior pleadings amount to unclean hands. He would submit that Defendant No.1 has led extensive evidence in Suit No.2363 of 2012 in which Plaintiff has deliberately chosen not to cross-examine him on any issue whatsoever which she has pleaded and argued for interim reliefs herein. He would submit that cross-examination of co-defendants is legally permissible and Plaintiff's failure to do so thus cannot be excused.

7.11. He would submit that reliance placed on prior Suit No.2363 of 2012 by the Defendant is permissible and is supported by the 29 (1994) 1 SCC 1 30 (2010) 14 SCC 38 31 (2007) 8 SCC 449 32 1968 SCC Online Cal 43 NMS.1211.2014+.doc decision in the case of Muddasami Venkata Narsaiah Vs. Muddasani Sarojana33 and Vinod s/o Khimji Lodaya Vs. Muljibhai s/o Manjibhai Patel & Ors.34 He would submit that Defendant Nos.1 to 4's limited Affidavit has relied on evidence from Suit No.2363 of 2012, unrebutted in Plaintiff's Rejoinder. He would submit that Plaintiff's contention that Defendant No.1's evidence in Suit No.2363 of 2012 is unreliable as it was led under Section 9A is misconceived, as such evidence is required to be considered at the stage of final disposal in terms of Order dated 16.07.2018 read with Section 3 of the Ordinance dated 27.06.2018. He would submit that Defendant No.1 has never claimed HUF was partitioned and transfers clearly show that its shares were never treated as HUF property.

7.12. He would submit that decision in the case of Vineeta Sharma (supra) establishes that a combination of factors demonstrate partition, which the conduct of the Plaintiff, Defendant No.5 and Gopal L. Raheja on record satisfies. He would submit that decision in the case of H. Vasanti Vs. A. Santha (Deceased) Through Lrs. And Others 35 places the burden on the Plaintiff to prove coparcenary character, which she has failed to discharge even at the prima facie stage. He would submit that reliance placed by Plaintiff on Revanasiddappa (supra) and Anjana Kumar (supra) is misplaced, as they reinforce strict proof requirements 33 (2016) 12 SCC 288 34 Civil Revision Application No.249 of 2011, decided on 25.06.2013 35 (2023 SCC Online SC 998)) NMS.1211.2014+.doc which are absent here at the interim stage.

7.13. He would submit that Plaintiff's reliance on oral partition judgments is also misconceived; that HUF continues to exist with balance sheets up to Financial Year 2023-24. He would submit that reliance on Plaint of Suit No.633 of 2000 is misleading, as it was filed by multiple parties individually, not solely by HUF. He would submit that the Suit demonstrates multiple recipients of shares, with HUF being only one among them.

7.14. He would submit that Plaintiff first attempted to claim Karta status orally over a decade after Gopal L. Raheja's demise and therefore her reliance on the decision of the Supreme Court in the case of Nagindas Ramdas Vs. Dalpatram Ichharamand and Ors.36 is misplaced. He would submit that paragraph No.27 of the same case clarifies that admissions in separate proceedings are evidentiary, not judicial. He would submit that Basant Singh Vs. Janki Singh37 reinforces that extra-judicial admissions are not conclusive. He would submit that Shri Ajodhya Bhargava Vs. Shri Bhawani Shankar Bhargava similarly distinguishes judicial and extra-judicial admissions, which are only partially binding.

7.15. He would submit that even if some assets were partially acquired from a family nucleus, the doctrine of blending ensures that 36 (1974) 1 SCC 2420 37 AIR 1967 SC 341 NMS.1211.2014+.doc assets purchased from personal funds or independent sources retain their separate character and there is no automatic conversion of all acquisitions into joint family property merely because some prior assets belonged to the nucleus. He would submit that Plaintiff cannot assume that shares, properties, or businesses automatically belong to the HUF without tracing each asset to the nucleus of joint family funds and there is no presumption that property is joint family property merely by

existence of a joint Hindu family and the burden lies on the claimant to establish HUF character.

7.16. He would submit that the Court in the case of Angadi Chandranna (supra) relied upon by Plaintiff emphasized that the existence of the nucleus must be established as a matter of fact, and cannot be presumed on probabilities and mere existence, however small, is insufficient; that it must be shown to be capable of reasonably producing the alleged joint family property and even if the nucleus is established, any accretions or acquisitions by a family member are not automatically presumed to be from the nucleus unless it is shown that the nucleus was an income-yielding apparatus, as held in R. Deivanai Ammal (Died) Vs. G. Meenakshi Ammal. He would submit that Plaintiff has prima facie failed to establish a presumption that the properties, shares, and assets belong to the HUF; that there is no proven nucleus, and reliance on prior judgments or oral partition claims is entirely misplaced and that partial blending of funds does not NMS.1211.2014+.doc convert personal acquisitions into HUF property without explicit proof linking them to the nucleus. He would submit that a person asserting joint family property must prove the existence of a sufficient nucleus as held in DS Lakshmaiah & Anr. Vs. L Balasubramanyam & Anr.38 7.17. He would submit that it is held in the case of Amita Gandoak Vs. Harikrat Singh Sodhi39 that a Hindu male, along with his wife and children, ipso facto constitutes a Hindu Undivided Family. However, post-1956, a HUF can only come into existence if an individual's property is thrown into a common hotchpotch with the intention of making such property HUF property. He would submit that in the case of Sagar Gambhir Vs. Sukhdev Singh Gambhir40, a Division Bench of the Delhi High Court held that the only way a Hindu Undivided Family can come into existence after 1956 is if the family property is thrown into a common hotchpotch and once property is so combined, the exact details of the specific date, month, and year of the creation of the HUF must be clearly pleaded and mentioned, as required under Order VI Rule 4 of the CPC and entitlement of the coparcener to a share in such HUF property must be expressly stated, and such positive statements regarding the constitution of the HUF are mandatory.

38 (2003) 10 SCC 310 39 2024 SCC OnLine Del 3475 40 2017 SCC OnLine Del 7305 NMS.1211.2014+.doc 7.18. He would submit that in Surender Kumar Vs. Dhani Ram41, the Delhi High Court held that it is insufficient to merely aver in the Plaint that a joint Hindu family or HUF exists and detailed facts must be specifically pleaded, including when and how the HUF properties became HUF properties, with factual references for each property claimed and only when such specific facts are clearly averred can a suit be filed and maintained by a person claiming to be a coparcener for the partition of HUF properties. He would submit that the Plaintiff has placed reliance on Manu Gupta (supra) and Tribhovandas Haribhai Tamboli (supra) to contend that being Karta is a legal entitlement of the eldest or senior-most member (including a daughter) of the HUF and that these judgments do not have any application in the present case because Plaintiff has neither sought a declaration to be Karta of the HUF in the present Suit nor she has ever claimed to be Karta of the said HUF till date.

7.19. He would submit that Plaintiff, having recognised the fatal flaws in her case, is belatedly attempting to couch her relief under the guise of a HUF and such an attempt ought not to be permitted after 11 years as it would amount to a gross abuse of the due process of law if Plaintiff is allowed to alter and set up a case inconsistent with the pleadings in the Suit Plaint, after a lapse of

almost a decade. He would submit that the Plaintiff is effectively seeking to thwart the functioning 41 2016 SCC OnLine Del 333 NMS.1211.2014+.doc of the Defendant Companies, which are going concerns, and is seeking in effect to halt the revenue-generating activities of the companies, attempting to bring them to a standstill without regard to the goodwill and reputation of the companies, the family, or the adverse impact on the life and livelihood of over 2,000 persons (as of 2014) employed and associated with the companies. He would submit that Plaintiff has failed to make out any case for the grant of interim reliefs in her favour.

7.20. He would submit that Defendant No.1 filed Application under Order VII Rule 11 of the CPC, 1908 seeking rejection of the Plaint as being barred inter alia under the provisions of the Limitation Act, 1963, the Prohibition of Benami Transactions Act, 1988, and the Companies Act, 1956 and 2013.

7.21. He would submit that the said Application came to be dismissed by an Order dated 10.06.2024 passed by this Court. He would further submit that Defendant No.1 has preferred Appeal (L) No.21572 of 2024 against the said Order, which Appeal is presently pending before this Court and no orders have been passed therein till date.

7.22. He would submit that the findings recorded in the Order dated 10.06.2024 are confined strictly to the limited scope of an Application under Order VII Rule 11 of the CPC, wherein this Court NMS.1211.2014+.doc considered only the averments made in the Suit Plaint, and was expressly precluded from examining any material beyond the Plaint. 7.23. He would submit that, consequently, the said Order does not consider, and could not have considered, the extensive documentary and evidentiary material now placed on record by Defendants, including prior pleadings, cogent documentary evidence from the record of the Defendant Companies / Entities, affidavits, admissions, documentary evidence and conduct of the Plaintiff which Defendant No.1 is entitled to rely upon at this stage which needs consideration for grant / rejection of interim reliefs.

7.24. He would submit that once the material pleaded by Defendant No.1 as also other Defendants is taken into account, it will be seen that the present Suit is demonstrably barred under the provisions of the Limitation Act, 1963 and/or the provisions of the Benami Transactions Act and/or the Companies Act, 1956 and 2013, notwithstanding the pendency of the Appeal arising from the Order VII Rule 11 proceedings.

7.25. He would submit that the relevant portion of the Order dated 10.06.2024 passed on the Application under Order VII Rule 11 of the CPC, 1908, insofar as limitation is concerned, records that based on the averments in the Plaint, the issue of limitation was held to be a mixed question of law and fact and therefore it is not determined at NMS.1211.2014+.doc the stage of Order VII Rule 11.

7.26. He would submit that assuming whilst denying that limitation is a mixed question of law and fact, Defendant Nos.1 to 4 are relying upon material which could not have been considered at the stage of Order VII Rule 11 which clearly establishes that the Plaintiff's claims are barred by limitation and hit by gross delay and laches. 7.27. He would submit that the Plaintiff's claim of

entitlement to an alleged one-fourth share in the assets of the Gopal L. Raheja Group of Companies on the basis of the 1995-1996 Family Arrangement is ex facie untenable and contrary to contemporaneous documents and her own conduct. He would submit that the contemporaneous documents, including the oral Family Arrangement of 1992 having been fructified over the years, the 1992 Will of Late Smt. Sheila Gopal Raheja, the 2001 and 2005-2007 share transfers by Gopal L. Raheja, Plaintiff and Defendant No.5 to Defendant Nos.1 to 4, and Plaintiff's own knowledge and participation, clearly demonstrate that Plaintiff's claims are barred by limitation, and her purported entitlement to 1/4th share is inconsistent with the actual transactions and arrangements. 7.28. He would submit that Plaintiff's case is premised on claims of nominal or fiduciary holdings and exceptions under the Benami Transactions (Prohibition) Act, 1988. He would submit that no HUF or fiduciary relationship exists to bring the transactions within the NMS.1211.2014+.doc statutory exceptions under Sections 4(3)(a) and/or 4(3)(b), and therefore, the Suit is barred under the Benami Transactions Act. He would submit that the Plaintiff cannot rely on HUF or trust/fiduciary exceptions as the shares are held by non-coparceners or third parties, making the Suit untenable under the statute. In this regard, he would rely upon the decision in the case of Maharaja of Vizianagram Vs. Secretary of State of India42 stating that it is trite law that a litigant who has all along maintained one position in a suit cannot be permitted to withdraw from the said position belatedly after failing to secure any relief.

7.29. He would submit that the Plaintiff relies on the expanded scope of Section 2(9)(A) of the Benami Act post the 2016 Amendment and contends that the "trust" exception falls within "fiduciary capacity"

> under Section 2(9)(A)(ii) but would submit that the 2016 Amendment is applicable only prospectively and in any event Section 2(9)(A)(b)(i) applies solely to HUF property is not the subject matter of the present Suit. Hence he would submit that the 2016 Amendment to the Benami Transactions Act has been held to be applicable in several decisions, inter alia, in the judgments like Mangathai Ammal (Died) through Legal Representatives & Ors. Vs. Rajeshwari & Ors.43 and Joseph Isharat Vs. Rozy Nishant Gaikwad44.
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> 42 1926 ILR Mad 249 43 (2020) 17 SCC 496 44 2017 SCC OnLine Bom 10006 NMS.1211.2014+.doc 7.30. He would submit that as regards Section 4(2) of the Benami Act, the Plaintiff's attempt to invoke it on the ground that Defendant No.1 allegedly contends that the Plaintiff is seeking to recover property held benami is misconceived. He would submit that Section 4(2) bars a defense only by a person claiming to be the real owner of property held benami. He would submit that it is the Plaintiff who asserts that the shares are ostensible, while Defendant No.1 maintains that the recorded shareholdings are genuine and there is no separate "real owner." He would submit that the reference in the Plaintiff's submissions is merely evidentiary and does not constitute a substantive plea under Section 4(2) as Section 4(2) cannot be used to prevent the recorded owner from asserting that the property is not benami. 7.31. He would submit that the Plaintiff's previous stand in Suit No. 2363 was that all properties were held in a fiduciary capacity for Gopal L. Raheja. However

in the present Suit, however, the Plaintiff alleges that the properties were held in fiduciary capacity for multiple persons, including Gopal L. Raheja, the Plaintiff, Defendant No.1, and Defendant No.5 and this demonstrates an approbating and reprobating stance by the Plaintiff.

7.32. He would submit that, notwithstanding the above, each person or entity held shares individually after the 1995-1996 Family Arrangement. He would submit that Plaintiff and Defendant No.5 held NMS.1211.2014+.doc certain minority shares only briefly, subsequently transferring all of them in 2005-2007 to Defendant Nos.2 to 4 when they exited the Group Companies and received consideration for the transfers. Thus he would submit that the shares were not held in fiduciary capacity for the Plaintiff, Gopal L. Raheja, Defendant No.1, or Defendant No.5, contrary to the Plaintiff's allegations.

7.33. He would submit that Section 88 of the Indian Trusts Act, 1882 requires a person in a fiduciary position to hold any pecuniary advantage gained for the benefit of the person whose interests are protected. He would rely on the judgment in the cae of Chennuru Gavararaju Chetty Vs. Chennuru Sitaramamurthy Chetty & Ors.45 which holds that a Plaintiff must bring the case strictly within the terms of Section 88 of the Indian Trusts Act, 1882. He would submit that Plaintiff has failed to establish the essential elements that any member of the alleged Gopal L. Raheja Group was bound to protect the interests of another and gained a pecuniary advantage by availing of such fiduciary position.

7.34. He would submit that the Supreme Court and High Court decisions make it clear that a fiduciary relationship must be established based on factual context and must resemble a trustee-beneficiary relationship and mere incantation of the term "fiduciary" without showing that the real owner claimed the property is insufficient to 45 1959 Supp (1) SCR 73 / AIR 1959 SC 190 NMS.1211.2014+.doc escape the bar under Sections 3 and 4 or secure the benefit of Section 4(3)(b) of the Benami Transactions Act (Pushpa Kanwar Vs. Urmil Wadhawan & Ors.46, Marcel Martins, Neeru Dhir & Ors. Vs. Kamal Kishore Dhir & Ors.). He would submit that the Plaintiff's own contradictions regarding fiduciary capacity demonstrate that the intent is unclear. He would submit that accordingly, no case is made out under Section 88 of the Indian Trusts Act, 1882 and no member of the alleged Gopal L. Raheja Group has acted in a fiduciary capacity for another.

7.35. He would submit that the Plaintiff's plea of "fiduciary capacity" is misconceived. He would refer to and rely upon the decision in the case of Savita Anand Vs. Krishna Sain and Ors.47 wherein the Delhi High Court held that fiduciary relationships have a strict legal meaning and do not arise merely from family or filial ties. He would submit that the Plaintiff has neither pleaded nor established any fiduciary duty, its misue in share transfers or any resulting precuniary advantage and hence not entitled for any relief at the interim stage.

7.36. He would submit that the Plaintiff has attempted to save her Suit from being barred under Section 4 of the Benami Act by claiming that the shares or properties held benami were held in "trust" for the 46 2009 SCC OnLine Del 3761 47 2020 SCC OnLine Del 2672 NMS.1211.2014+.doc purported Gopal L. Raheja Group. The Plaintiff has only made vague references to the assets, businesses, and properties being held in a fiduciary capacity or in trust for all members of the Group. 7.37. He would submit that for the exception under Section 4(3)

(b) of the Benami Transactions Act to apply, the trust must be an express trust as held in Soonderedas Thakersey and Ors. Vs. Bai Lamibai and Ors.48 Sections 81, 82, and 94 of the Indian Trusts Act, 1882, which dealt with resulting, implied, or constructive trusts, were repealed by Section 7 of the Benami Act and an express trust must be expressly created in accordance with Sections 5, 6, and 10 of the Indian Trusts Act, 1882 requiring the author of the trust to indicate intention, purpose, beneficiaries, and trust property with reasonable certainty. He would submit that the Plaintiff has prima facie failed to show that any such express trust exists.

7.38. He would submit that resulting, implied, or constructive trusts are no longer recognized under law, and only express trusts are valid as confirmed by hte Delhi High Court in the case of J.M. Kohli Vs. Madan Mohan Sahni49. He would submit that Plaintiff's references to implied or resulting trusts are legally insufficient, and her reliance on cases like Janardhan Dagdu Khomane & Anr. Vs. Eknath Bhiku Yadav & Ors. is distinguishable as it pertained to public trusts. He would 48 ILR BOM (1945) 1047 49 2012 SCC OnLine Del 2620 NMS.1211.2014+.doc submit that minors (Defendant Nos.3 and 4) cannot hold shares in a fiduciary capacity as no express trust has been established, making Section 4(3)(b) inapplicable.

7.39. He would submit that there is no pleading or document establishing any express trust and the Plaint at best alleges a resulting trust. He would submit that in the absence of pleadings satisfying Section 6 of the Indian Tusts Act, as held in LIC Vs. Smt. Iqbal Kaur & Ors.50 no case of express trust is made out by the Plaintiff. 7.40. He would submit that the Plaintiff's reliance on Circular No. 8/18/75/-CL-V dated 31.03.1975 is misplaced, as her case is not for partition of an HUF and the Circular cannot override statutory provisions of the Companies Act. He would submit that Plaintiff has failed to file statutory declarations under Section 187C of the Companies Act, 1956, or Section 89(8) of the Companies Act, 2013 and Section 89(8) bars enforcement of rights in undeclared shares, and Section 90 requires declaration of significant beneficial interest or control. Hence he would submit that Plaintiff's failure to comply renders any claims over the alleged shares unenforceable. 7.41. He would submit that the Plaintiff's claim to be a 25% undivided beneficial owner and Karta of the HUF, which allegedly holds all shares, properties, and assets of the Defendant Companies, is 50 J&K HC 1983 NMS.1211.2014+.doc untenable. He would submit that Plaintiff has failed to file Forms BEN- 1 or BEN-2 under the Companies (Significant Beneficial Owners) Rules, 2018, Sections 89 and 90 of the Companies Act, 2013, demonstrating that she never considered herself the Karta or ultimate beneficial owner. He would refer to and rely upon the decision of the Delhi High Court in the case of Sanjeev Mahajan Vs. Aries Travels Pvt. Ltd.51 and other authorities which confirm that beneficial ownership must be publicly declared and failure to

do so bars enforcement. He would submit that the Plaintiff has admitted that the HUF shareholding had been transferred prior to 2007 and she cannot produce documentation of beneficial ownership hence her claims are therefore inconsistent with contemporaneous records, including prior Affidavits and her alleged benami plea is therefore legally unteanable. 7.42. He would submit that the Division Bench of the Madras High Court in Syed Mohamed Salahuddin & Ors. Vs. Ahmed Abdulla Al Ghurair & Ors.52 affirmed by the Supreme Court in Ahmed Abdulla Ahmed Al Ghurair Vs. Star Health & Allied Insurance Co. Ltd. 53 has held that where relief is barred by Section 187(c) read with 89(8) of the Companies Act, a suit seeking such relief is itself not maintainable. 7.43. He would submit that the Plaintiff's Suit is barred for non- compliance with statutory declarations under Section 187C or Section 51 2020 SCC OnLine Del 2550 52 (2018) 6 Mad LJ 257 53 (2019) 13 SCC 259 NMS.1211.2014+.doc 89(8) of the Companies Act, akin to a notice under Section 80 of the CPC. Courts are duty-bound to reject a plaint barred on the face of it, as held in Gangappa Gurupadappa Gugwad Gulbarga Vs. Rachawwa, Widow of Late Lochannapa Gugwad & Ors .54 and her reliance on cases such as Khajamiya Miransaheb Vs. Peerapasha Miransaheb and Indrakumar Mahendran Vs. G R Pathmaraj is misplaced as she has admitted prior HUF share transfers.

7.44. He would submit that findings under Order VII Rule 11 of CPC that a pleading survives does not establish a prima facie case. He would submit that while Plaintiff's status as coparcener is not disputed, the properties, assets, and businesses listed in Exhibit B to the Suit Plaint are in dispute and which can be decided only at trial since contemporaneous records, prior Affidavits, Family Arrangements, and Wills prima facie distinguish HUF property from self-acquired property and hence the Plaintiff cannot simultaneously claim the same shares as HUF property while relying on the alleged Will (while approbating and reprobating) at the same time.

7.45. He would submit that the Supreme Court in the case of Mandali Ranganna & Ors Vs. T. Ramachandra & Ors55 has held that, in addition to the three factors of (i) prima facie case, (ii) balance of convenience, and (iii) irreparable injury, the Court must also consider 54 1970 3 SCC 716 55 (2008) 11 SCC 1 NMS.1211.2014+.doc the conduct of the parties; that a party who has kept quiet for a long time cannot be entitled to an injunction, which is an equitable relief. He would submit that the contrary stances of the Plaintiff in the Plaint and in support of the case as pleaded by Gopal L. Raheja can only be displaced by Plaintiff by leading evidence and at trial and without such evidence being given and surviving cross-examination, Plaintiff cannot sustain even a prima facie case. He would submit that apart from limitation, Plaintiff's conduct, delay, laches, and suppression disentitle her from any interim reliefs, and such conduct must be weighed against her plea for equitable relief. He would therefore pray that the present Notice of Motion No.1211 of 2014 be dismissed with costs, and that the Perjury Petition No.2 of 2014 filed by Defendant No.1 be listed for hearing expeditiously.

8. Dr. Saraf, learned Senior Advocate appearing for Defendant No.2 at the outset would adopt the submissions advanced by Mr. Khambata. For the sake of brevity the same are not reiterated herein and are taken as traversed herein. Additionally he would submit that Plaintiff has categorically asserted that present Suit is one for partition of the Gopal L. Raheja HUF however such a case has absolutely no foundation in the Suit Plaint. He would submit that on bare perusal of the Suit Plaint it is seen that except for stray references to "Karta" or "Joint Family" there is no pleading

whatsoever to suggest that Suit is one for partition of any HUF much less Gopal L. Raheja HUF. He NMS.1211.2014+.doc would submit that on the contrary, Suit Plaint consistently proceeds on the footing that it seeks enforcement of a partition/division of properties, assets and businesses of the "Gopal L. Raheja Group" as a contractual group under the 1995-1996 Family Arrangement namely Exhibits C1 to C4. He would submit that the Suit, pleadings and prayers clearly negate any case of partition of a HUF but Plaintiff's case now advanced in arguments on coparcenary share in HUF is wholly beyond pleadings and therefore impermissible in law. 8.1. He would submit that the Suit Plaint defines "Gopal L. Raheja Group" as comprising of Gopal L. Raheja/his estate, Plaintiff, Defendant No.1 (for himself and his family/ group being Defendant Nos.2 to 4) and Defendant No.5 in terms of the 1995-1996 Family Arrangement (Exhibits C1 to C4). He would submit that the reliefs sought are for a declaration that these members have equal and undivided 1/4th share in Gopal L. Raheja Group and seeks partition in accordance with the Family Arrangement. He would submit that if at all Plaintiff's case is considered to be one for partition of HUF then the shares would necessarily be fluctuating and upon demise of Gopal Raheja in March 2014, at the highest Plaintiff could only have claimed a 1/3rd share only. He would submit that the Suit Plaint conspicuously ignores the coparcenary rights of daughters (Defendant Nos.3 and 4) of Defendant No.1 which would otherwise necessarily have been recognised in a HUF partition. He would submit that these issues and NMS.1211.2014+.doc absence of foundational pleadings clearly demonstrate that the Suit is not founded on coparcenary or HUF principles.

8.2. He would submit that Plaintiff's reliance on the 1987 Family Arrangement as a document effecting partition of the Lachmandas Raheja HUF is entirely misconceived and unsupported by any material and cogent pleadings. He would submit that said Agreement merely records separation of Suresh L. Raheja from the business carried on by the brothers at the then time and involves as parties their wives, minor sons and daughters and separate HUFs also. He would submit that the 1987 Family Agreement nowhere records that the businesses or properties were HUF assets or that they were brought under any HUF. He would submit that merely because the father and brothers carried on business together does not in any manner give rise to a presumption of HUF ownership in the absence of a clear intention to treat the assets as Joint Family Property since inception.

8.3. He would submit that the 1995-1996 Family Arrangement equally do not constitute that business carried on by Chandru L. Raheja and Gopal L. Raheja were a part of the Lachmandas Raheja HUF. He would submit that complete absence of Kishore L. Raheja from these Arrangement despite Plaintiff's own pleadings that he had an independent and insignificant interest alone defeats any suggestion of a HUF partition. Further, he would submit that the documents relied NMS.1211.2014+.doc upon by Plaintiff themselves recognise individual shareholdings and separate HUF holdings, demonstrating that the HUFs were treated as distinct and independent entities in the said group holdings. 8.4. He would submit that it is crucial to consider Plaintiff's conduct in including Defendant No.2 (daughter-in-law of Gopal L. Raheja) as a constituent of the "Gopal L. Raheja Group" in paragraph No.1 of the plaint and relying on her participation and signatures in Exhibits C3 and C4 pertaining to the Family Agreement of 1995-1996 while simultaneously excluding her from the reliefs sought which is legally impermissible. He would submit that such selective inclusion and exclusion by Plaintiff renders the Suit Plaint internally inconsistent and vitiates the Suit on the ground of coparcenary share. 8.5. He would submit that Defendant No.2

being the daughter-in- law of Gopal L. Raheja is not a coparcener of the HUF and that shares standing in her name are her absolute personal property. Since 1995- 96, Defendant No.2 has held shares in her individual capacity and between 2005-2007, Plaintiff and Defendant No.5 exited the Defendant Companies and thereafter transferred shares to Defendant No.2 for due consideration paid by her in her personal capacity. He would submit that these transactions are corroborated by contemporaneous records including Plaintiff's Capital Account for the year 2007-2008 thereby reflecting substantial gifts received by Plaintiff NMS.1211.2014+.doc from Gopal L. Raheja, Defendant No.1 and Defendant No.2. He would submit that these transfers were never challenged in accordance with law, these transfers are valid, binding and have not been brought to Court in any collateral proceedings. He would therefore submit that Plaintiff has not placed on record any explanation as to why such absolute and complete transfers were made in the name of Defendant No.2 considering there being HUF in existence according to Plaintiff's own case.

8.6. He would submit that Plaintiff herself has relied upon the Suit Plaint and pleadings in Suit No.2363 of 2012 filed by her father Gopal L. Raheja and is therefore bound by the positions taken therein, wherein it was never his case that the Group Companies or their shareholdings belonged to any the HUF much less Gopal L. Raheja HUF, rather it was his case that all properties, assets and businesses absolutely belonged to Gopal L. Raheja personally with shares standing in the names of family members and it is clearly stated in that Suit Plaint that the HUF or holding Companies held shares only for convenience in a fiduciary capacity and in trust for him. 8.7. He would submit that the Suit Plaint in the said Suit records a binding and subsisting Family Arrangement arising from the 1995- 1996 Family Agreement under which Gopal L. Raheja continued as the sole beneficial owner and all shareholding, voting rights, management NMS.1211.2014+.doc and control were to be exercised only as directed by him, a position consistently supported by Plaintiff, who asserted that such shares and even those held by the HUF were held in trust for Gopal L. Raheja. He would submit that Plaintiff herself in the Suit Plaint creates a clear distinction between the Gopal L. Raheja Group and the HUF wherein she herself considers the HUF to be a part of the Gopal L. Raheja Group. He would submit that Plaintiff in paragraph No.25 in the Suit Plaint has stated that incorporation of new Companies and acquisition of assets were from the funds accrued by Gopal L. Raheja himself and not from any purported nucleus of HUF as is now sought to be alleged by her. He would therefore submit that the jointness of family has to be proved but the initial burden would lie upon the person alleging existence of a Joint Family and that the property belongs to it. In support of his above submission he has referred to and relied upon the decision of the Supreme Court in the case of Bhagwant Sharan (dead through legal representatives) Vs. Purushottam and Others.56 and specifically on paragraph No.21 in the said decision. 8.8. He would submit that Plaintiff has suppressed her earlier Affidavit dated 25.10.2012 in the previous Suit proceedings which fact is highlighted by Defendant No.1 wherein she has expressly supported Gopal L. Raheja, affirmed the binding nature of the 1995-1996 Family Arrangement, accepted share allotments and the division granting her 56 (2020) 6 SCC 387 NMS.1211.2014+.doc only an 8.5% share, has also acknowledged that the HUF held only nominal shareholding and accepted transfer of such HUF shareholding in favour of Gopal L. Raheja in his personal capacity and Defendant No.1 thereby negating any claim of equal coparcenary rights whatsoever under a HUF.

8.9. He would submit that Plaintiff has reiterated the same position in her Rejoinder dated 10.12.2012 and only after no reliefs were granted has sought to change her stand in her Written Statement of April 2013 by setting up an alternative and contingent claim of equal rights under HUF, amounting to impermissible approbation and reprobation, coupled with evasive denials. In support of this submission he has referred to and relied upon the decision of the Supreme Court in the case of Badat and Co. Bombay Vs. East India Trading Co.57 wherein the Court held that evasive or non-specific denials in pleadings operate as admissions under Order VIII Rules 3, 4 and 5 of the CPC subject to discretion of the Court. He would submit that law prohibits a party from simultaneous approbation and reprobation after the said party has accepted the benefits of transactions and in the case at hand, the same is prima facie proven on the basis of cogent prima facie documentary evidence by Defendant Nos.1 to 4. In support of his above submission he has referred to and relied upon the following decisions of the Supreme Court in the case of 57 1963 SCC OnLine SC 9 NMS.1211.2014+.doc R.N. Gosain Vs. Yashpal Dhir58 ; Mumbai International Airport Pvt. Ltd. Vs. Golden Chariot Airport 59 and Union of India and Others. Vs. N. Murugesan and Others.60 8.10. He would submit that Plaintiff's case was never one for partition of HUF and the present Suit is filed nearly after two decades to seek partition of the 1995-1996 Family Arrangement and to set aside share transfers that are clearly barred by limitation. He would submit that Plaintiff's case on ostensible shareholding is also hit by the provisions of Benami Transactions Act which thereby disentitles her to any interim or final relief. He would submit that Plaintiff's reliance on the Order passed in Order VII Rule 11 Application is misplaced as it does not conclude merits at the stage of interim relief. Hence, he would urge the Court to reject the present Notice of Motion.

9. Mr. Tamboly, learned Advocate appearing for Defendant Nos.3 and 4 would adopt the submissions advanced by Mr. Khambata and Dr. Saraf and would additionally submit that the HUF is admittedly not made a party to the present Suit. He would submit that if at all Plaintiff's case is genuinely one for partition of the HUF, then in that case the HUF would necessarily have to be impleaded and the Suit should have been instituted by Plaintiff in her capacity as Karta of the HUF. Rather he would submit that it is an admitted position that 58 (1992) 4 SCC 683 59 (2010) 10 SCC 422 60 (2022) 2 SCC 25 NMS.1211.2014+.doc Defendant No. 1 has been acting as Karta of the HUF since the demise of Gopal L. Raheja which completely contradicts Plaintiff's own stand on pleadings in the Suit Plaint.

9.1. He would submit that had the Suit been one for partition, Defendant Nos.3 and 4 would have been included within the definition of the "Gopal L. Raheja Group" and would have been included in the prayers as shares have been admittedly transferred by Plaintiffs to these Defendants on reciprocity. He would submit that prayer clauses "A" and "B" in the Suit Plaint conspicuously exclude Defendant Nos.3 and 4 while including Gopal L. Raheja who had already passed away prior to filing of the Suit. He would submit that Defendant Nos.3 and 4 i.e. Gayatri and Aditi, both daughters of Defendant No.1 were minor at the time of filing of the Suit, however it is crucial to consider that the Suit Plaint was never amended upon them attaining majority despite the Hindu Succession (Amendment) Act, 2005 coming into force and they were never treated as coparceners or allotted any share thereby demonstrating that the Suit is not one for partition of a HUF. 9.2. He would submit that Plaintiff's plea that shares were transferred to Defendant Nos.3 and 4 i.e. Gayatri and Aditi as fiduciaries or trustees is inherently untenable as the transfers were effected when

Gayatri was 8 years old and Aditi was 4 years old. He would submit that it is settled law that minors cannot act as fiduciaries NMS.1211.2014+.doc or trustees and under Section 10 of the Indian Trusts Act, 1882 a Trustee shall be a person capable of holding a property and can execute a contract where discretion is involved. He would therefore submit that this very ground renders Plaintiff's case legally unsustainable.

9.3. He would submit that Plaintiff has set up inconsistent claims namely an alleged 25% share under the 1995-1996 Family Arrangement, an alleged 8.5% share under the 01.06.2012 - Family Arrangement coupled with an alleged "assurance" of half (1/2) of 33% and unpleaded claim of equal coparcenary rights i.e. 1/4 th share as coparcener of the HUF. He would submit that such contradictory stands cannot coexist in law and it clearly demonstrates the absence of a coherent cause of action in the Suit Plaint.

9.4. He would submit that Plaintiff's own submissions show that she seeks to interfere with the management and operations of 26 Defendant - Companies by seeking disclosures and appointment of an Administrator or Receiver. He would submit that Plaintiff has failed to satisfy the requirements of a prima facie case, balance of convenience and irreparable injury. He would submit that Defendant - Companies are professionally managed for the past several years rather decades owning substantial assets and employing thousands of employees. He would submit that the reliefs claimed by Plaintiff are in the nature of NMS.1211.2014+.doc causing hindrance to the ongoing businesses, therefore the balance of convenience favours non-interference in the Defendant - Companies. 9.5. He would submit that no case for irreparable injury suffered by Plaintiff is made out if the interim reliefs are not granted. He has referred to and relied upon the decision of the Supreme Court in the case of Best Sellers Retail (India) Pvt. Ltd. Vs. Aditya Birla Nuvo Ltd. and Others61 wherein it is held that irreparable injury is injury/damage that cannot be compensated in monetary terms, however he would submit that in the present case the alleged loss is clearly compensable, if any, in monetary terms. Hence he would submit that there is no question of Plaintiff suffering irreparable injury in the event if interim reliefs are not granted at this stage.

9.6. He would submit that it is crucial to consider Plaintiff's conduct as Plaintiff has approached the Court by suppression of material facts, inconsistent Affidavits and pending perjury proceedings thereby disentitling her to any equitable relief as argued by Defendant Nos.1 and 2. He would submit that while granting equitable relief Court shall look at the conduct of the party in invoking the jurisdiction of Court and may refuse to interfere unless the party's conduct is free from blame. In support of his above submission he has referred to and relied upon the decision of the Supreme Court in the case of Gujarat 61 (2012) 6 SCC 792 NMS.1211.2014+.doc Bottling Co. Ltd. and Others Vs. Coca Cola and Others62. 9.7. He would submit that appointment of Administrator or Receiver under Order XL Rule 1 of the CPC is wholly unwarranted in the absence of any threat to the properties. He would submit that power of the Court for appointment of Administrator or Court Receiver are discretionary and Courts only resort to such appointment when there is a serious threat to the property which is not the case however in turn it would seriously hamper and disrupt the functioning of Defendant - Companies. Lastly, he would submit the Plaintiff is seeking to be introduced in some capacity in the Defendant - Companies, a position which did not exist in the last 30 years. He would therefore submit that such wide reliefs can only be granted in exceptional

circumstances which is not the case in the present Notice of Motion. He would submit that under the guise of interim reliefs Plaintiff is impermissibly seeking final reliefs at an interim stage which is impermissible in law and the facts of the present case. In support of his above submissions he has referred to and relied upon the decisions of the Supreme Court in the case of Dorab Cawasji Warden Vs. Coomi Sorab Warden and Others63; Samir Narain Bhojwani Vs. Aurora Properties and Investments and Another64; Hammad Ahmed Vs. Abdul Majeed and Others; S. Saleema Bi Vs. S. Pyari Begum and Another 65 62 (1995) 5 SCC 545 63 (1990) 2 SCC 117 64 (2018) 17 SCC 203 65 (2019) 14 SCC 1 NMS.1211.2014+.doc and Parmanand Patel (dead by legal heirs) and Another Vs. Sudha Chowgule and Others.66 In view of the above submissions, he would urge the Court to reject the Notice of Motion in the interest of justice.

10. Mr. Mehta, learned Advocate appearing for Defendant No.5 at the outset would fairly submit that Defendant No.5 neither supports the Plaintiff's case nor the Defendant Nos.1 to 4's case and would adopt a completely neutral and independent stand. He would submit that there was no oral Family Arrangement of 1992 as alleged by Defendant No.1 which is evident from the fact that as part of separation with Chandru L. Raheja in 1995-1996, approximately 11% and 5% shareholding in the Gopal L. Raheja controlled Group Companies were allotted to Sonali i.e. Defendant No.5 and Sabita i.e. Plaintiff respectively. He would submit that Defendant No.1 admits the said position as is evident from his limited Affidavit-in-Reply. He would submit that Defendant No.1 has alleged that this Arrangement was done only on account of the fact that it was not permissible for Gopal L. Raheja and Defendant No.1 to be the only shareholders of the Group Companies on account of statutory regulations. He would submit that pursuant to this Arrangement, on 01.06.2012, Gopal L. Raheja distributed the assets and businesses amongst the Members of the Gopal L. Raheja family.

66 (2009) 11 SCC 127 NMS.1211.2014+.doc 10.1. He would submit that around 31.08.2012 and onwards while Gopal L. Raheja was undergoing surgery, Defendant No.1 illegally held Board Meetings and appointed his in-laws as Directors of various Group Companies to usurp control over the Boards of these Companies. He would submit that on 18.09.2012 Gopal L. Raheja filed Suit No.2363 of 2012 in this Court seeking specific performance of the Gopal L. Raheja Family Arrangement and distribution and division effected by him on 01.06.2012 and also challenged the validity of the various Board Meetings held in the interregnum and its decisions. 10.2. He would submit that on 18.03.2014 Gopal L. Raheja expired leaving behind his Will dated 12.01.2012 and Codicil dated 11.02.2014 under which Plaintiff and Defendant No.5 are the primary beneficiaries of Gopal L. Raheja's entire Estate. He would submit that Defendant No.1 has usurped all shares standing in the name of Gopal L. Raheja as he was the 2nd holder therein for convenience. He would submit that Defendant No.5 filed Testamentary Petition No.1140 of 2014 before this Court seeking Probate of the last Will late Gopal L. Raheja dated 12.01.2012 and Codicil thereto. He would submit that the Petition is converted into Testamentary Suit No.115 of 2015 and is pending in this Court.

10.3. He would submit that Defendant No.1 has filed Testamentary Petition No.1072 of 2014 seeking Probate in respect of NMS.1211.2014+.doc Gopal L. Raheja's Will dated 14.05.2007 despite the fact that the said Will was cancelled by Gopal L. Raheja during his lifetime. He would submit that this Petition is also converted into Testamentary Suit No.63 of 2015. He would submit that on 30.07.2014, Plaintiff filed the present Suit. He would submit that Defendant No.5 in view of the

conduct of Defendant No.1 has filed an independent Suit being Suit No.103 of 2015 in which she has sought administration and protection of Gopal L. Raheja's Estate in which order dated 12.02.2015 has been passed by consent of parties in respect of shareholdings of Gopal L. Raheja's four Companies and the said order continues to operate as on date.

10.4. On merits, for entitlement to share in the Gopal L. Raheja group of Companies, he would submit that, in 1995 - 1996 though shareholding of the Gopal L. Raheja Group of Companies standing in the name of Plaintiff and Defendant No.5 was approximately 5% and 11% only, the said shareholding was held only for convenience. He would submit that name of Defendant No.1 was added as second name in respect of all shares of the Group Companies only for convenience and without any consideration. He would submit that in 2004 Defendant No.5 was detected with a brain tumor at which time Defendant No.1 had serious apprehension regarding possible interference by the family members of Plaintiff and Defendant No.5 in the Gopal L. Raheja Group of Companies. He would submit that due to NMS.1211.2014+.doc this reason and at the insistence of Gopal L. Raheja (their father), the Plaintiff and Defendant No.5 transferred their entire shareholding to Defendant Nos.1 - 4 for NIL / nominal consideration. He would argue that even assuming consideration was received it was not against transfer of shares. He would submit that in 2011 - 12, disputes arose between Gopal L. Raheja and Defendant No.1 as Defendant No.1 believed Gopal L. Raheja intended to marry a lady and confer benefits upon her. He would submit that due to this apprehension Defendant No.1 for the first time on 28.01.2012 in his reply to Gopal L. Raheja propounded an alleged the 1992 oral Family Arrangement claiming to be the sole beneficiary of the businesses of Gopal L. Raheja Group of Companies. He would submit that even though this theory is propounded by Defendant No.1, in 2012 Gopal L. Raheja directly and indirectly through his 4 Holding Companies held substantial shareholding in Defendant Nos.7 - 10, he would vehemently submit that there was no such 1992 oral Family Arrangement as propounded by Defendant No.1 since post 1995 - 1996 Family Division / Arrangement, 11 % and 5% shareholding in the Gopal L. Raheja Group of companies was allotted to Defendant No.5 and Plaintiff respectively. He would submit that in that view of the matter Defendant No. 5 has filed a separate Suit being Suit No. 103 of 2015 seeking declaration and entitlement to 50% undivided right, title and interest in all assets and properties and estate of her father Gopal L. Raheja as per his Last NMS.1211.2014+.doc Will and 2 Codicils and other consequential reliefs. Hence he would submit that this Court take into cognizance the facts and circumstances in the present case and pass appropriate orders in the Notice of Motion filed by the Plaintiff in accordance with law.

11. Mr. Nankani, learned Senior Advocate appearing for Defendant Nos.7 to 10 - Companies would at the outset submit that he would adopt the submissions made by Mr. Khambata, Dr. Saraf and Mr. Tamboly on behalf of Defendant Nos.1 to 4, which for brevity are not reiterated herein and are taken as traversed by him. Additionally he would submit that Defendant Nos.7 to 10 - Companies own multiple projects across India, including hotels, clubs, malls, residential and commercial developments, employing over 2,000 (as in 2014) employees and Plaintiff's assertion that all their shares, assets and businesses belong to the HUF is prima facie unsustainable as there no such averment made in the Suit Plaint. He would submit that these Companies are distinct legal entities under the Companies Act and if any of their shares were ever held by any HUF then the Register of Members of Companies would expressly reflect such share holding which it does not as no HUF ever

held any shares in Defendant Nos. 7 and 9.

11.1. He would submit that insofar as Defendant Nos. 8 and 10 are concerned limited shares were indeed held by the Gopal L. Raheja HUF NMS.1211.2014+.doc in the past. With regard to Defendant No.8 - Company, he would submit that in 2001 these share were transferred in the joint names of the HUF and Defendant No.1. and were thereafter in 2005 transferred in the joint names of Gopal L. Raheja and Defendant No.1. He would submit that after the demise of Gopal L. Raheja in 2014 all such shares now stand solely in the name of Defendant No.1 as reflected in the statutory records which has been effected by following the due process of law. With regard to Defendant No.10 - Company, he would submit that in 2007 these shares were transferred in the joint names of Gopal L. Raheja and Defendant No.1 and subsequently they now stand solely in the name of Defendant No.1. He would submit that as on the date of the Suit (2014), the HUF held no shares in Defendant Nos. 7 to 10 - Companies and none of these transfers have ever been challenged by Plaintiff until filing of the Suit.

11.2. He would submit that under Sections 88 readwith Section 95 of the Companies Act, 2013, the Register of Members constitutes prima facie evidence of shareholding and any plea to the contrary must be proved at trial. He would submit that if Plaintiff claims to be a 25% beneficial owner then mandatory declaration under Sections 89 and 90 of the Companies Act, 2013 readwith the Companies (Significant Beneficial Owners) Rules, 2018 is required to be made which is not been done or filed by Plaintiff on the date of her such assertion.

NMS.1211.2014+.doc 11.3. He would submit that Plaintiff was a Director only in Defendant No.9 - Company however owing to her conduct she was removed as Director on 29.09.2020. He would submit that Plaintiff has not challenged her removal which clearly goes to the root of the matter. He would submit that Plaintiff held shares only in Defendant Nos.8 and 9 - Companies however by 2005-2006 all such shares held by here were transferred to other Defendants for reciprocity and none of the above transfers are challenged by Plaintiff in the interregnum until her claim by way of the present Suit.

11.4. He would submit that to overcome the above the alleged Arrangement is pleaded by Plaintiff which can only be proved at trial. In support of his submissions he has referred to and relied upon the decisions of the Supreme Court in the case of Bacha F. Guzdar Vs. Commissioner of Income Tax, Bombay67 and BRS Ventures Investment Limited Vs. SREI Infrastructure Finance Limited and Another 68. He would submit that the Suit as filed in any event is barred by limitation and the Benami Transactions Act which issues have been adequately argued by Defendant Nos.1 to 4. Hence, he would urge the Court to reject the Notice of Motion.

12. Mr. Momaya, learned Advocate appearing for Defendant Nos.11 to 15, 17 to 19, 22, 24 and 25 would adopt the submissions 67 (1954) 2 SCC 563 68 (2025) 1 SCC 456 NMS.1211.2014+.doc advanced by the learned Advocates for Defendant Nos.1 to 4 and Defendant Nos.7 to 10 which for brevity are not reiterated herein but taken as traversed by him. Additionally he would submit that Defendant No.12 has been renamed from K. Raheja Real Estate Services Pvt. Ltd. to K. Raheja Realty Services Private Limited and even after Plaintiff expressly being informed of this change by

letter dated 11.05.2022 by the Advocate for these Defendants despite that Plaintiff has deliberately failed to amend the Suit Plaint. 12.1. He would submit that Defendants are Companies incorporated under the Companies Act with independent legal existence and limited by shares. He would submit that Plaintiff earlier held certain shares in Defendant No.11 - Company and in her erstwhile holding of Defendant No.13 - Company which were subsequently transferred by her and thereafter she never held any shares in those Companies. He would submit that Plaintiff has never filed any declaration as mandated that she is the beneficial owner of any of these Defendants - Companies.

12.2. He would submit that Plaintiff's assertion that the shareholdings of these Defendant Companies belong to the HUF is wholly misconceived as the HUF held only a minuscule shareholding in Defendant Nos.11 and 25 - Companies which were then transferred on 30.11.2007 to the joint names of Gopal L. Raheja and Defendant No.1, NMS.1211.2014+.doc after which Gopal L. Raheja HUF held no shares. He would submit that none of these transfers have been challenged by the Plaintiff. He would submit that upon demise of Gopal L. Raheja on 18.03.2014 the jointly held shares by him were duly transmitted to the sole name of Defendant No.1 in accordance with the Articles of Association and provisions of the Companies Act. He would submit that Plaintiff is neither a shareholder nor Director of any of these Companies and has therefore has no locus to maintain the present Notice of Motion against these Defendants and in any event, even a shareholder has no right, title or interest in the properties or assets of a Company. Hence, he would submit that Plaintiff's case for grant of interim reliefs is wholly untenable.

13. Mr. Bharucha, learned Advocate appearing for Defendant Nos.27 to 30 would adopt the submissions advanced by learned Senior Advocates for Defendant Nos.1 to 26 which for brevity sake are not reiterated herein and are taken as traversed by him. Additionally he would submit that Defendant Nos.27 to 30 are companies incorporated under the Companies Act with independent legal existence and limited by shares. He would submit that Plaintiff admittedly never held any shares in these Companies nor filed any mandatory declaration claiming beneficial ownership.

NMS.1211.2014+.doc 13.1. He would submit that Plaintiff's contention that the shareholdings of these Companies belong to the HUF is false as the HUF held only one share each jointly with Defendant No.1 which was then transferred on 30.11.2007 to the joint names of Gopal L. Raheja and Defendant No.1 and none of these transfers have been challenged till date by the Plaintiff. He would submit that in line with the Oral Family Arrangement of 1992 these Companies were made the holding Companies of Gopal L. Raheja in the year 1994 and since inception Gopal L. Raheja and Defendant No.1 were the only Directors and shareholders apart from one HUF share with joint holdings structured to ensure succession in favour of Defendant No.1 which is evident from the compilation of excerpts from historical Annual Returns of Defendant - Companies from 20 years ago which have been filed with Registrar of Companies and are in the public domain. 13.2. He would submit that upon the demise of Gopal L. Raheja on 18 March 2014, all jointly held shares were transmitted to the sole name of Defendant No.1 in accordance with the Articles of Association and the provisions of the Companies Act. He would submit that even assuming that Plaintiff was a shareholder she would still have no right, title or interest in any of these Company's assets. He would submit that Plaintiff had illegally appointed her and thereafter was lawfully removed as Director on 16.06.2014 after following the due process, that neither a shareholder nor a Director of

any of the Defendants has NMS.1211.2014+.doc locus or entitlement to seek any interim reliefs against these Defendant

- Companies. Hence, he would urge the Court to reject the Notice of Motion filed by the Plaintiff.

14. Mr. Naphade, learned Advocate for Defendant Nos.31 to 32 would adopt the submissions and arguments advanced by Advocates for Defendant Nos.1 to 4 and Defendant Nos.7 to 10 which for brevity are not reiterated herein. Additionally he would submit that Defendant No.31 (Sea Crust Properties Pvt. Ltd.) was converted into Sea Crust Properties LLP on 26.02.2021 and Defendant No.32 (Greenfield Hotels and Estates Pvt. Ltd.) was converted into Greenfield Hotels and Estates LLP on 19.03.2021 and Plaintiff was expressly informed of these conversions by letters dated 08.06.2021 enclosing the relevant Certificates of Registration yet Plaintiff deliberately failed to amend the Suit Plaint thereby amounting to suppression of material facts and launching prosecution against non-existent entities. 14.1. He would submit that prior to conversion, Plaintiff never held any shares in these Defendants - Companies and never filed any statutory declaration claiming beneficial ownership and the assertion that the shareholdings belonged to the HUF is wholly misconceived as the HUF never held any shares in these Companies. He would submit that Defendant No.31 was made the holding company of Defendant No.1 in the year 1994 and Defendant No.32 was made the holding NMS.1211.2014+.doc company of Defendant No.2 in the year 1996 pursuant to the 1995- 1996 Family Arrangement with Defendant Nos.1 and 2 holding the entire shareholding since inception.

14.2. He would submit that none of the share transfers in favour of Defendant Nos.1 and 2 and specifically Defendant No.2 not being a coparcener of the HUF have ever been challenged by the Plaintiff and any such challenge is now barred by limitation. In support of his submissions he has referred to and relied upon the decision of this Court (Coram: Sharmila U. Deshmukh, J.) in the case of Ganesh Madhukar Pednekar through his legal heir Vs. State of Maharashtra and Others.69. Further, he would submit that Plaintiff was never a Director in these Companies and is presently not a Partner in the LLPs hence she has no locus to seek any reliefs against Defendant Nos.31 and 32 and the proceedings against them are wholly misconceived.

15. Mr. Kakalia, learned Advocate appearing for Defendant Nos.33 and 34 would submit that Defendant No.33 is an independent and well-established business family engaged in finance and distributorships since the year 1932 owning substantial assets across India and neither Defendant No.33 nor Defendant No.34 has ever been dependent on Gopal L. Raheja or the Raheja family for income. He would submit that Defendant No.33 was appointed as Director in various Defendant - Companies at the request of Defendant No.1 and 69 2024 SCC OnLine 2645 NMS.1211.2014+.doc Gopal L. Raheja with their knowledge, consent and participation, including Board Resolutions signed by Gopal L. Raheja and Defendant No.33 never received any salary or remuneration for the same. 15.1. He would submit that appointments of Defendant Nos.33 and 34 as Additional Directors in December 2011 were lawful and in accordance with the Companies Act and the Articles of Association, duly supported by Form 32 filings and regularised at Annual General Meetings in September 2012, rendering all objections academic. He would submit that Plaintiff has no locus to challenge these appointments as she is neither a shareholder nor a Director of any of these

Defendant - Companies, save and except having been a Director of Defendant No.9 - Company until September 2020 and therefore her claim of learning of appointments only through ROC searches is prima facie false.

15.2. He would submit that allegations that Defendant Nos.33 and 34 were appointed to usurp control are baseless and unsupported and they are being unnecessarily drawn into an inter se family dispute. He would submit that Plaintiff has no authority under the Memorandum or Articles of Association to interfere with Board functioning or restrain duly appointed Directors. He would submit that Plaintiff has not approached the appropriate forum and has also failed to establish any prima facie case, balance of convenience or irreparable injury and thus NMS.1211.2014+.doc grant of interim reliefs as prayed for for interference with these Defendants - Companies would prejudice the functioning of the Companies. Hence, he would urge the Court to reject the Notice of Motion in the interest of justice.

16. Mr. Setalvad, learned Senior Advocate appearing for Plaintiff has made the following submissions in his Rejoinder submissions in reply to Defendants' case.

16.1. He would submit that absence of a pleaded express trust is not fatal and that repeal of Section 94 of the Indian Trusts Act, 1882 does not fetter this Court's inherent power to declare a trust where fraud or abuse of confidence is alleged. He would submit that the doctrine of constructive trust applies, as Defendant No.1 has fraudulently usurped exclusive control over the Group's assets, including the Plaintiff's share, and therefore urges the Court to pass interim reliefs in the interest of justice. In support of this submission he has referred to and relied upon the decision of the Supreme Court in the case of Janardan Dagdu Khomane and Another Vs. Eknath Bhiku Yadav and Others70, specifically on paragraph Nos.32 to 38 of the said decision.

16.2. He would submit that even if Defendant No.1's contention of applicability of bar under Section 4(1) of the Benami Act is considered, 70 (2019) 10 SCC 395 NMS.1211.2014+.doc Defendant No.1 would equally be barred under Section 4(2) from raising any defence in respect of alleged benami property. He would submit that while Defendant No.1 has asserted in his limited Affidavit- in-Reply (page No.102) that Plaintiff seeks recovery of benami property, Plaintiff in fact seeks only a declaration of her equal and undivided right, title and interest in the assets of the Gopal L. Raheja Group Companies. He would submit that this issue however stands concluded by Order dated 10.06.2024 passed by this Court in Defendant Nos.1 to 4's Application under Order VII Rule 11 CPC and therefore Plaintiff cannot be precluded from urging the same and relying upon the said finding in the present proceedings. 16.3. He would submit that plea of limitation raised by Defendant Nos.1 to 4 is misconceived as Plaintiff is not challenging transfers of shares in 1996 or 2005-2006 but seeks a declaratory relief of her equal and undivided share in the assets of Gopal L. Raheja Group and partition thereof. He would submit that Article 110 and 58 of the Limitation Act, 1963 provide for a period of 12 years from the date of exclusion or ouster from the joint family once it becomes known and 3 years from the date on which the right to sue first accrues. He would submit that the Suit is filed within limitation under both the aforesaid Articles. He would submit that it is an admitted position that there was no dispute until December 2011 - January 2012 when Defendant No.1 for the first time refused to co-operate with Gopal L. Raheja qua NMS.1211.2014+.doc division

and distribution of the assets of the Group. 16.4. He would submit that on 28.01.2012 Defendant No.1 propounded an alleged oral Family Arrangement of 1992 and denied rights of Plaintiff and Defendant No.5 and claimed exclusive interest in shares, including those standing in the name of Gopal L. Raheja. He would submit that cause of action thus arose on 28.01.2012 and Suit filed on 01.08.2014 is well within limitation under both the applicable Articles. He would therefore submit that the cause of action arose within three years prior to the filing of the Suit and it does not defeat Plaintiff's claim for partition, which necessarily follows once the declaratory relief is sought within limitation. 16.5. He would submit that objection of Defendant Nos.1 to 4 as also Defendant Nos.7 to 10 and 27 to 30 Companies that Suit is barred for non-filing of declarations under Section 187C of the Companies Act, 1956 and Section 89 of the Companies Act, 2013 is misconceived. He would submit that the Circular dated 31.03.1975 issued by the Department of Company Affairs clarifies that Section 187C does not apply to HUF as no coparcener can claim specific shares and it continues to operate under the 2013 Act by virtue of Section 465(2)(a) and (b) of the 2013 Act read with Section 24 of the General Clauses Act, as supported by the decision of the Supreme Court in Poonjabhai Vanmalidas Vs. Commissioner of Income Tax, Ahmedabad 71. He would 71 1992 Supp (1) SCC 182 NMS.1211.2014+.doc submit that there is no inconsistency between Section 187C of the 1956 Act and Section 89 of the 2013 Act as affirmed by this Court in its Order dated 10.06.2024. He would submit that contention that the Circular applies only when a Karta holds shares on behalf of the family is erroneous, particularly when Defendant No.1 has fraudulently usurped the shares and falsely claimed exclusive ownership to the exclusion of the other coparceners. He would rather argue and submit that Plaintiff is the lawful Karta of the family after demise of Mr. Gopal L. Raheja in 2014. He would submit that Defendant No.1 cannot take advantage of his own wrong and since dispute pertains to title of the shares, provisions relating to declaration of beneficial interest under both Acts is wholly inapplicable. In support of this submission he has referred to and relied upon the decision of the Karnataka High Court and Madras High Court in the case of Khajamiya Miransaheb Vs. Peerpasha Miransaheb72 and specifically on paragraph Nos.7, 9 and 10 and Indrakumar Mahendran Vs. G.R. Pathmaraj and Ors. 73 and specifically on paragraph Nos.841 and 842 of the said decision. 16.6. He would submit that Plaint must be read as a whole and on bare perusal of Plaint it is clearly seen that Plaintiff's case is for partition. He would submit that vide order dated 10.03.2024 it is affirmed that there are sufficient pleadings of there being a HUF. He would submit that contention of Defendant Nos.1 to 4 that Plaint 72 IRL 1986 Kar 2240 73 2010 5 L.W. 832 NMS.1211.2014+.doc pertains to Gopal L. Raheja Group and not Gopal L. Raheja HUF is also noted in the Order dated 10.06.2024 and the same has been rejected. He would therefore submit that mere nomenclature used in the Suit Plaint does not in law alter the case of Plaintiff of there being a HUF. He would submit that once the existence of HUF is held by the Competent Court then the same cannot be re-adjudicated for the purpose of interim reliefs before the same Court. In support of his above submission he has referred to and relied upon the decision of the Supreme Court and Rajasthan High Court in the case of Gulabchand Chhotalal Parikh Vs. State of Gujarat74; Sulochana Amma Vs. Narayanan Nair 75; Hope Plantations Ltd. Vs. Taluk Land Board, Peermade and Another76 and Magharaj Calla Vs. Kajodi Mal77. 16.7. He would submit that Defendant No.1 also confirmed that businesses were Joint Family businesses and therefore jurisprudentially this pleading is sufficient for seeking share by the coparceners. He would submit that Defendant No.1 has tried to take advantage of the fact that Plaintiff refers to Gopal L. Raheja HUF as Gopal L. Raheja Group in the Suit Plaint. He would submit that It is settled legal position that a "group"

cannot hold property as there can be no partition of a "group". He would therefore submit that Plaintiff's coparcenary rights cannot be denied merely because it is 74 AIR 1965 SC 1153 75 (1994) 2 SCC 14 76 (1999) 5 SCC 590 77 AIR 1994 Raj 1 NMS.1211.2014+.doc nomenclatured as a "group" instead of "HUF" and the said contention of Defendant No.1 is misconceived and untenable. In support of this submission he has referred to and relied upon the decision of the Supreme Court in the case of Hardeo Rai Vs. Sakuntala Devi78 specifically on paragraph No.18 in the said decision. 16.8. He would therefore submit that as there exist a Gopal L. Raheja HUF in which Plaintiff is a coparcener then the assets and businesses held by and through Defendant Nos.7 to 32 Companies constitute joint family property. He would submit that the coparcenary properties as on date are set out in the Family Arrangement of 1987 from page No.265 onwards of the Suit Plaint and therefore it is clear that Gopal L. Raheja HUF was never partitioned till date and therefore it is this partition which Plaintiff seeks in the present Suit. He would submit that the same is established by way of Chamber Order No.399 of 2014 wherein Defendant No.1 transposed himself as "Karta" of the Gopal L. Raheja HUF and no partition is borne out by the fact that Defendant No.1 and 5 never pleaded a partition and never stated the percentage of share. He would submit that no documents or pleadings have been placed on record to evidence either a complete or partial partition at any time after 1995-1996. Hence, he would submit that the assets and businesses that came to Gopal L. Raheja HUF pursuant to partition of 1995-1996 are and continue to be Joint Family properties. 78 2008 7 SCC 46 NMS.1211.2014+.doc 16.9. He would submit that Defendant No.1's case that an oral Family Arrangement of 1992 existed is a complete afterthought raised for the first time only on 28.01.2012. He would submit that the same is denied by every other coparcener and the same is not supported by any contemporaneous public document. He would submit that such an oral partition cannot survive in law particularly in light of Section 6(5) of the Hindu Succession Act, 1956 which is a complete answer to the Defendant's case. He would submit that prior to 09.09.2005 Plaintiff had no coparcenary rights in law, consequently any transfers made to her between 1992 and 09.09.2005 could never have been in lieu of coparcenary rights or partition. He would submit that such transfers cannot defeat statutory rights that accrued only on 09.09.2005. He would submit that even post-2005 transfers cannot be construed as settlement of coparcenary rights as Plaintiff's right to claim partition arose only by operation of law on 09.09.2005 and cannot be retrospectively extinguished by reference to an alleged pre-2005 oral arrangement. He would submit that the 1995-1996 written family arrangement clearly demonstrates continued joint property and directly contradicts the theory of a 1992 partition. Hence, he would submit that in absence of proof of concurrence no valid partition could have occurred in 1992.

16.10. He would submit that the contention that only shares standing in the name of the Gopal L. Raheja HUF constitute NMS.1211.2014+.doc coparcenary property is legally untenable. He would submit that merely because certain shares were shown in the register of Members and entered wrongly in the name of the HUF does not and cannot in law and in absence of partition lead to conclusion that the HUF property was limited to only those shares. He would submit that Gopal L. Raheja as Karta held the authority to direct in whose names the shares would be held however this did not alter the fundamental position that all such shares though held in the names of various members /coparceners of the HUF were held for the benefit of the coparceners and it did not affect the equal and undivided rights of the coparceners of the Gopal L. Raheja HUF. He would therefore submit that there was "no" transfer either in law or in fact as the shares continued to vest in all the

coparceners of the Gopal L. Raheja HUF even though ostensibly held by Defendant No.1.

16.11. He would submit that the contention of Defendant No.1 that Plaintiff had fully supported Gopal L. Raheja in Suit No.2263 of 2012 and he has now taken a contrary stand which is misconceived and untenable. He would submit that even assuming Plaintiff had accepted Gopal L. Raheja's case, there can be no estoppel against law, and Plaintiff cannot be precluded from asserting her legal entitlement of an equal and undivided share in the Gopal L. Raheja HUF.

NMS.1211.2014+.doc 16.12. He would submit that Defendant No.1's reliance on Plaintiff's failure to cross-examine him in Suit No.2363 of 2012 is wholly misconceived as the evidence led therein was confined to preliminary issues under Section 9A of the CPC. He would submit that non-cross-examination in the earlier Suit does not amount to any admission in the present Suit since evidence from a prior proceeding can be relied upon only in the limited circumstances contemplated under Section 33 of the Indian Evidence Act, none of which are satisfied. In support of this submission he has referred to and relied upon the decision of the Calcutta High Court in the case of Sarba Ranjan Basak Vs. Haripriya Dasi 79. He would submit that there was also no consent between the parties to adopt such prior evidence in the present Suit. He would submit that Defendant No.1 is therefore required to lead evidence afresh, rendering Plaintiff's non-cross-examination in Suit No.2363 of 2012 wholly irrelevant for the purposes of the present Notice of Motion.

16.13. He would submit that Section 2(9)(A)(b) of the Benami Transactions Act is inapplicable as the properties are held by the Gopal L. Raheja HUF and the consideration was also paid by the HUF and therefore none of the ingredients of Section 2(9)(A) are satisfied. He would submit that the burden of proving benami lies on the party asserting. In support of this submission he has referred to and relied 79 ILR 1949 2 Cal 510 NMS.1211.2014+.doc upon the decision of the Supreme Court in the case of Jaydayal Poddar Vs. Bibi Hazra80 and since it is Defendant No.1 who alleges that the shares are held benami the initial onus to prove the same by leading evidence rests entirely on him. He would submit that mere allegations cannot defeat Plaintiff's claim for interlocutory reliefs and the question of Plaintiff proving any statutory exception would arise only if Defendant No.1 first establishes the applicability of the Benami Transactions Act.

16.14. He would submit that Defendant Nos. 11 to 15, 17 to 19, 22, 24, 25, 31 and 32 have not filed any Affidavit-in-Reply and the averments against them therefore remain uncontroverted. He would submit that Defendant No.1 is impermissibly using the Group Companies to espouse and advance his own personal case, which cannot be permitted. He would submit that all properties, assets and businesses of the Gopal L. Raheja HUF were held through the Group Companies which were merely vehicles for holding coparcenary property and Plaintiff's coparcenary rights cannot be defeated by reliance on the Companies Act. He would submit that the Companies have no independent locus and are misused by Defendant Nos.1 and Defendant No.2 the said Companies being family-owned and family- run entities intrinsically linked to the joint family properties and businesses of the Gopal L. Raheja HUF. He would submit that 80 (1974) 1 SCC 3 NMS.1211.2014+.doc Defendant No.1 and his wife are seeking to hide behind the Corporate Veil of the Defendant Companies to defeat Plaintiff's coparcenary rights. He would submit that the fact that the HUF did not hold shares in the Group Companies is irrelevant, a company being incapable of being a shareholder and the

shareholding pattern did not reflect true ownership, the shares being held ostensibly for and on behalf of the coparceners of the Gopal L. Raheja HUF. He would submit that the provisions of Section 59 readwith Section 430 of the Companies Act, 2013 relied upon by the Group Companies are wholly irrelevant and cannot be read de-hors HUF law or used to defeat the Plaintiff's coparcenary rights.

16.15. He would submit that Defendant Nos.33 and 34 have not filed any Affidavit-in-Reply to the present Notice of Motion and are therefore precluded from making submissions. He would submit that their appointment as Additional Directors / Directors was part of Defendant No.1's plan to usurp control of the Group Companies and consequently the properties, assets and businesses of the Gopal L. Raheja HUF. He would submit that prior to disputes in 2011-2012 Defendant No.33 was a Director in Defendant Nos.16 to 20, 22 and 25 while Defendant No.34 was not a Director in any Company and that after disputes arose Defendant No.1 unilaterally appointed them as Additional Directors in Defendant Nos.7 to 11, 14, 31 and 32 Companies. He would submit that these unilateral appointments are NMS.1211.2014+.doc illegal and were made solely to usurp control of the family-owned companies holding HUF properties as also reflected in Gopal L. Raheja's letters dated 11.01.2012 and 28.02.2012 calling upon Defendant No.33 to stop attending the office and to be withdrawn as Director / Additional Director.

16.16. He would therefore submit that Plaintiff does not seek to interfere with the functioning of the Gopal L. Raheja Group Companies but is asserting her lawful rights as a coparcener and Karta of the Gopal L. Raheja HUF which Defendant No.1 seeks to defeat. Hence, in view of the aforesaid facts and settled legal position, he would urge the Court to allow the present Notice of Motion and grant interim reliefs in the interest of justice.

16.17. Hence, in view of the above submissions he would urge the Court to allow the present Notice of Motion and grant interim reliefs in the interest of justice.

17. I have heard the submissions of the learned Senior Advocates / Advocates appearing for the respective parties at length and with their able assistance perused the entire record of the case. Submissions made by the learned Advocates at the bar have received due consideration of the Court for considering Plaintiff's case for grant of interim reliefs.

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18. At the outset, it is seen that the case of Plaintiff is based on the premise that Plaintiff is a coparcener by virtue of the Amendment to the Hindu Succession Act, 2005 in respect of all properties, assets and businesses held by and through Defendant Nos.7 to 32 which according to Plaintiff constitute "Joint Family Property" belonging to the Gopal L. Raheja HUF. The thrust of Plaintiff's case is for partition of this "Joint Family Property" belonging to Gopal L. Raheja HUF. wherein Plaintiff claims to be a coparcener and therefore entitled to partition and share of 1/4th coparcenary rights in the properties, assets and businesses of Gopal L. Raheja HUF. According to Plaintiff, right since inception i.e. the extended Lachmandas Raheja Family was a Joint Hindu Family and the Joint Family businesses remained with Lachmandas Raheja and Sons HUF, all

throughout and upon the final separation in 1995-1996 between Gopal L. Raheja Group and Chandru L. Raheja Group, the Gopal L. Raheja HUF continued to remain "Joint Family" and dealt with the properties belonging to Gopal L. Raheja HUF as "Joint Family Property".

19. Plaintiff's case is that Gopal L. Raheja HUF has never been partitioned till date and there is no pleading, document or contemporaneous conduct evidencing either a complete or partial partition of the Gopal L. Raheja HUF at any time after 1995-1996. According to Plaintiff, the Raheja Family was always "Joint Family" and continued to be "Joint" even after the individual limbs separated from NMS.1211.2014+.doc the Lachmandas Raheja one by one until 1995-1996. Hence, it is argued by Plaintiff that there is a legal presumption that a Hindu Family is "Joint in Estate" and the state of jointness continues until a formal partition is proven.

20. According to Plaintiff since there has never been a partition or a partial partition of the Gopal L. Raheja HUF properties neither it has been pleaded that the properties and assets controlled by Defendant No.1 having been acquired from his own estate from his self acquired funds. Hence it is urged that until the Suit is determined Plaintiff is entitled to interim reliefs of participating and dealing with the Joint Family Property and businesses held and controlled by Defendant Nos.1 to 32 and in the final analysis subject to trial, Plaintiff is entitled to 25% share in the entire assets.

21. Plaintiff's case is resisted by Defendants on the basis of inconsistent pleadings and definition of the "Gopal L. Raheja HUF"

> curated by Plaintiff in arguments advanced across the bar, subsistence of a 1992 oral Family Agreement within the Gopal L. Raheja Group / HUF, fructification of the oral Family Agreement by affirmative acts on the part and conduct of Plaintiff, bar under provisions of Section 4(1) and (2) of the Benami Transactions Act, the Limitation Act, 1963 and the Companies Act, 2013 and on the principles governing grant of injunction at the interim stage.
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22. Principally, except for Defendant No.5 rest of the Defendants have argued on the timing of pressing the Notice of Motion for interim relief in the year 2025 when the same was filed alongwith the Suit proceedings on 01.08.2014, though it is argued by Plaintiff that there was a delay due to pendency of the Section 9A proceedings / Application filed by Plaintiff between 2014 and 2023 i.e. for a period of 8 years and 11 months and thereafter Defendant Nos.1 to 4 having filed Application under Order VII Rule 11 of CPC for dismissal of the Suit which remained pending for a further period of 10 months and it is only thereafter on 12.06.2024 Plaintiff pressed the present Notice of Motion seeking interim relief. Defendant No.5 has neither supported Plaintiff nor opposed the Notice of Motion but has prayed for allowing the same.

23. From the above timeline, it is prima facie seen that nothing precluded the Plaintiff from seeking interim reliefs during pendency of the Section 9A proceedings. It is seen that on 08.11.2014, Defendant Nos.1 to 4 filed their limited Affidavit-in-Reply to the present Notice of Motion wherein,

inter alia, preliminary issue under Section 9A of CPC and bar of Benami Transactions Act were raised by Defendants, however it is seen that there was no embargo on Plaintiff to press the Notice of Motion for ad-interim or for that matter interim reliefs or for that matter such appropriate reliefs at that time. The period of 8 years 11 months spent in deciding the aforesaid preliminary issue raised NMS.1211.2014+.doc under Section 9A cannot be a factor for consideration specially when substantive interim reliefs are pressed for qua Defendant Nos.1 to 4 and 7 to 32 in the facts and circumstance of the present case.

24. The Application of Defendants under Order VII Rule 11 of CPC was decided within 10 months between 31.07.2023 and 10.06.2024 i.e. during pendency of which it could be rightly argued that Plaintiff did not press for interim or ad-interim reliefs in the present Notice of Motion.

25. I say this because of the precursor facts prior to filing of the Suit in the year 2014 and successive facts subsequent thereto being the reason for the same. At the outset it is seen that one of the grounds argued by Plaintiff is that a binding finding of fact has been returned by this Court on the basis of existence of sufficient pleadings of there being a Gopal L. Raheja HUF in the order dated 10.06.2024 in paragraph Nos.35 and 36 while determining the Application filed by Defendants under Order VII Rule 11 of CPC. Challenge to this order is though pending in Appeal.

26. It is vehemently argued that contention of Defendants with regard to the Suit Plaint referring to the "Gopal L. Raheja Group" and not "Gopal L. Raheja HUF" was considered in the proceedings under Order VII Rule 11 and comprehensively rejected as can be seen from paragraph Nos. 9F, 9G, 22, 23, 24, 31 and 32 in the said Order. It is argued that question of sufficient pleadings existing in the Suit Plaint NMS.1211.2014+.doc to demonstrate that Suit is for Partition of Gopal L. Raheja HUF was substantially and directly in issue and it stands already decided by this Court in the Order dated 10.06.2024. Hence, according to Plaintiff once that is so decided the said finding is binding on this Court while deciding Application for interim reliefs and the same argument cannot be re-agitated by Defendants, since the factual issue already stands decided.

27. In that view of the matter Plaintiff has argued that prayer clause "A" of the Suit Plaint seeking declaration that Plaintiff has an equal and undivided share in Gopal L. Raheja HUF which prima facie deserves to be accepted for grant of interim relief. Unfortunately prayer clause "A" does not refer to any "HUF" at all. Prima facie, I am of the opinion that such submission advanced by Plaintiff is therefore completely erroneous and untenable on the face of record. It is pertinent to note that when Application under Order VII Rule 11 of CPC filed by Defendants was decided by Court, it had to only look into the Suit Plaint and the Exhibits appended thereto and nothing more. Hence, averments made in the Suit Plaint were accepted by Court and deciphered by Court to render the finding in the order under Order VII Rule 11 of Application.

28. However it is clear that for grant of interim reliefs having wide ramifications such unilateral averments cannot be considered by Court as they stand and the Affidavits-in-Replies to the Notice of NMS.1211.2014+.doc Motion by Defendants and material placed on record will have to be prima facie considered on the basis of assertions and denials supported by cogent material and after weighing the same on the four (4) parameters for grant of injunction namely (1) prima facie case

made out by Plaintiff for grant of injunction; (2) balance of convenience of both parties (Plaintiff and Defendants) to the Suit proceedings; (3) irreparable loss, prejudice and harm that could be caused to the party (Plaintiff) if injunction is not granted and or to Defendants if injunction is granted most importantly, (4) conduct of the parties only and after considering these parameters grant of interim reliefs will have to be considered by Court.

29. I must caution that parties have argued for interim relief on the basis of pleadings and documentary evidence at length therefore the aforementioned principles for grant of injunction will have to be employed and considered. Rather I must note that Plaintiff has argued the Motion for interim reliefs as if Plaintiff has already led evidence and proved the same when that is not the case. It is prima facie seen that Prayer clause "A" seeks declaration that Gopal L. Raheja / his estate, Plaintiff, Defendant No.1 and Defendant No.5 (comprising the Gopal L. Raheja Group) are entitled to equal and undivided share, right, title and interest in the properties, assets and businesses of the Gopal L. Raheja Group and management and control thereof in terms of the 1995-1996 Family Arrangement (as seen from Exhibits C1 to NMS.1211.2014+.doc C4) whereas Prayer clause "B" seeks partition of all properties, assets and businesses of Gopal L. Raheja Group by metes and bounds. However on perusal of the Suit Plaint it is seen that the Plaint is extremely verbose and when read as a whole it is seen that the case pleaded is that Gopal L. Raheja HUF is part of the Family Agreement of 1995-1996 and entitled to a share as part of the contracting Group. Hence submissions made for seeking interim reliefs on the ground of "HUF" is not be found in the prayer clauses as also in the Suit Plaint.

30. It is seen that no case whatsoever is prima facie made out by Plaintiff that either the 1987 Family Arrangement or 1995-1996 Arrangement was in any manner partition of the Lachmandas Raheja HUF leading to vesting of properties in Gopal L. Raheja HUF in the Suit Plaint. If principal relief is for partition necessary averments to that effect will have to be specifically pleaded in the Suit Plaint. However it is not so seen. Rather it is argued to the contrary that the Suit is one for partition of Gopal L. Raheja HUF as per the 1995-1996 Family Arrangement. However, when the said 1995-1996 Family Arrangement is perused below Exhibits C1 to C4 appended to the Suit Plaint, it is prima facie seen that there are six (6) contractual parties thereto, one of them being Gopal Raheja HUF and one being Defendant No.2 who is not a coparcener admittedly.

31. It is seen that apart from Plaintiff, Defendant No.1, Defendant No.5 and Gopal L. Raheja the other two contracting parties NMS.1211.2014+.doc are Defendant No.2 (wife of Defendant No.1) and Gopal L. Raheja HUF who are independent signatories to the said 1995-1996 Family Agreement. These two parties have been conveniently left out by Plaintiff while arguing for interim reliefs despite they being part of record of Plaintiff's own case. This is prima facie similar to the case of the 1987 Family Agreement by virtue of which one of the brother of Gopal L. Raheja namely Suresh L. Raheja and his wife comprised in the second group therein separated from the family businesses. Thus when the two Family Agreements / Arrangements are read it is prima facie discernible that nowhere it is reflected that properties were ever vested in the Lachmandas Raheja HUF and were passed down to the sons of Lachmandas Raheja and ultimately to Gopal L. Raheja HUF as ancestral properties, infact separation of the fourth brother Kishore L. Raheja and his family / group is not even brought on record by Plaintiff despite he being part of the Family and it being pleaded on

record that he separated sometime in the year 1991 so as to support her submission of properties belonging to Lachmandas Raheja HUF having been precipitated down to his sons as HUF.

32. Most importantly, it is seen that the 1995-1996 Family Agreement clearly records Gopal L. Raheja HUF as one out of the six (6) contracting parties thereto. If the Plaintiff's case is to be prima facie accepted as being a division between four (4) contracting parties to the Gopal L. Raheja HUF / Gopal L. Raheja Group then Exhibits C1 to C4 NMS.1211.2014+.doc the documents of alleged partition relied upon by the Plaintiff herself do not support the Plaintiff's case either. There is a clear reference thereto to two the additional contracting parties that is Defendant No.2 and Gopal L. Raheja HUF who are independent entities and shareholders.

33. It is prima facie seen that the fundamental documents of partition i.e. Exhibits C1 to C4 referred to and relied upon by Plaintiff reflect partition of properties between two brothers and their family members and more specifically properties which have been controlled by them solely but with cross holdings by members of the other group. It is prima facie seen that Gopal L. Raheja HUF, Defendant No.1, Gopal L. Raheja, Plaintiff and Defendant No.5 independently were shareholders in several Companies either controlled by the family members of Gopal L. Raheja or family members of Chandru L. Raheja. It is also clearly evident from record relied upon by Defendants that the HUFs were treated as independent shareholders having independent shareholdings distinct and different from other members and it held shares in various Companies. Prima facie the ledger account of distinct shareholding of Gopal L. Raheja HUF has been placed on record but if it so denied by Plaintiff then the burden of proof will be on Plaintiff to prove to the contrary and that can only be subject to trial. It is seen from the record placed by Defendant No.1 that the amount of approximately Rs.46 lakhs was derivated in the NMS.1211.2014+.doc Gopal L. Raheja HUF after all transfers and at the highest Plaintiff would have a share as coparcener in this shareholding. Such material is placed on record in the form of separate ledger maintained in the name of Gopal L. Raheja HUF in the books of accounts of the Companies and prima facie cannot be disbelieved at this stage.

34. If the Plaintiff's case is to be believed that there are / were only four (4) shareholders of the Gopal L. Raheja Group then the documents namely Exhibits C1 to C4 relied upon by the Plaintiff herself speak to the contrary. The averments in the Suit Plaint itself are clearly inconsistent and self-contradictory, since they do not consider Defendant No.2 who is a signatory to the 1995-1996 Family Arrangement. Defendant No.2 is admittedly not a coparcener of Gopal L. Raheja HUF. Hence, no relief based on coparcenary rights or HUF can lie against Defendant No.2. However, if it is argued by Plaintiff across the bar that the Suit Plaint is for partition of Gopal L. Raheja HUF then Plaintiff ought to have claimed 1/3rd share therein and not 1/4th share as prayed for post demise of her father Gopal L. Raheja. Hence, on the issue of coparcenary rights, case of Plaintiff clearly falls short of pleadings rather on the basis of inconsistent pleadings the principal prayer clauses are clearly not justified for grant of interim reliefs.

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35. Further, on perusal of the material placed on record by Defendant Nos.1 to 2 which is alluded to herein above while recording their submissions it is seen that since 1995-1996, Defendant No.2 held shares in her personal capacity pursuant to the said Family Agreement / Arrangement and during the period between 2005 and 2007, Plaintiff and Defendant No.5 exited from the Defendant - Companies and transferred their entire shareholding in favour of Defendant No.2 to 4 entirely. It is however clear that this cannot be an unilateral act or a gratuitous act and if it is so then it will have to be proved by Plaintiff on evidence. Prima facie case of Defendant Nos.1 and 2 is that substantial consideration was paid to Plaintiff and Defendant No.5 which has been not only pleaded in the pleadings by Defendant No.2 but prima facie material evidence is placed on record to that effect by Defendant Nos.1 and 2 which clearly prove the same. Though it is denied by the Plaintiff on the ground on quantum, it will have to be so proved by the Plaintiff once the Written Statement is filed and issues are framed by the Court. Defendant No.5 has however agreed that nominal consideration was paid but denies that it was equal to her share. Even before the Suit is filed this position on behalf of Defendant No.1 is however consistent as can be seen from the reply dated 28.01.2012 addressed by him to the letter dated 11.01.2012 received from his father Gopal L. Raheja.

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36. Further, with regard to the above prima facie it is seen that the Capital Account statement of Plaintiff of year ending 2007-2008 clearly shows receipt of substantial gifts / monies by Plaintiff from her father - Gopal L. Raheja, her brother Defendant No.1 - Sandeep Raheja and most importantly Defendant No.2 - Durga Raheja. When such prima facie evidence is placed on record regarding specific transfers made in favour of Defendant No.2 and for which it is averred by the other side that consideration was paid then in that case such transfers will have to be considered as prima facie valid, complete and binding which have not been challenged in accordance with law or no pleadings or explanation are given as to why such transfers were infact made unless they are proved as illegal or to the contrary. It is clearly seen that these transfers also included immovable properties details of which have been given in the Affidavit-in-Reply of Defendant No.1.

37. In that view of the matter, the initial burden to prove to the contrary will therefore lie on the Plaintiff at trial. Mere pleading of Plaintiff will not substitute such a case which is supported by prima facie documentary evidence placed on record by Defendant Nos.1 to 4.

38. In the present case, the timeline is also crucial. It is seen that transfer of shares to Defendant Nos.2, 3 and 4 from Plaintiff and Defendant No.5 have taken place between 2005-2007. Suit is filed in the year 2014. However, it is not even pleaded in the Suit Plaint that NMS.1211.2014+.doc such transfers were effected though the Suit Plaint is extremely verbose and prima facie travels beyond several factual frontiers. It is pertinent to note that it is conspicuously silent on the conduct of Plaintiff regarding the above transfers. Though it is argued that transfers were indeed effected on the instructions of her father - Gopal L. Raheja as mere family gifts to a daughter, Plaintiff will have to stand to trial for proving the circumstances under which such transfers were made and disprove the case of reciprocity since transfer are not of mere movable gifts but of immovable properties.

39. Further, Plaint is conspicuously silent on the fact that in 1995-1996 under the Family Agreement, Plaintiff's approximate shareholding was a mere 5% and Defendant No.5's shareholding was 11% whereas Defendant No.1's shareholding was 30% and the reason for Plaintiff to remain silent until 2014. This is so because Suit is filed for partition of properties under the 1995-1996 Family Arrangement seeking entitlement to 25% shareholding therein when the admitted shareholding of Plaintiff and Defendant No.5 was already held @ 5% and 11% only. Thus even on the issue of limitation, Plaintiff will have to prove her case for remaining silent since then.

40. In paragraph No.116 of the Suit Plaint, Plaintiff has alleged that Defendant No.1 and his wife Defendant No.2 have cheated and defrauded Plaintiff's father Gopal L. Raheja and have deprived the NMS.1211.2014+.doc Plaintiff and Defendant No.5 of their equal and undivided rights, share title and interest in assets and businesses of Gopal L. Raheja and Management and control thereof in 1995 - 1996 Family Arrangement inter se the Gopal Raheja Group and hence the Suit is filed. The Suit is filed in the year 2014. Prima facie on the basis of this averment itself the Plaintiff has waited for more than 18 years to file the Suit and for more than 29 years to press the Notice of Motion.

41. Next in paragraph No.117 of the Suit plaint, the Plaintiff has stated that Defendant No.1 has by his acts and deed deliberately excluded Plaintiff and Defendant No.5 from the properties, assets and businesses of Gopal L. Raheja Group and Management thereof contrary to the terms of a valid, subsisting and binding 1995 - 1996 Family Arrangement inter se the Gopal L. Raheja Group. However, Plaintiff has immediately thereafter stated that the correspondence exchange between Plaintiff and Defendant No.1 and actions of Defendant No.1 clearly demonstrate that the properties, assets and businesses / Management of the Gopal L. Raheja Group held by and through the instrumentality of Defendant Nos.7 to 19 and 21 to 23 and 27 to 32 and interest in Defendant Nos.20 and 24 to 26 are been sought to be fettered away / wasted and hence there is an urgent need to protect the same. Save and except this sentence, there is no other averment, inter alia, with respect to fraud, cheating or conduct of Defendant No.1 as alleged by Plaintiff. These are the only two averments with respect NMS.1211.2014+.doc to fraud and for filing of the Suit in the year 2014. Undoubtedly, limitation would be a mixed question of law and fact which would be proved by the Plaintiff but on the face of record in the wake of such averments for fraud, the relief sought for by the Plaintiff in the present Notice of Motion seeking joint management and control of the properties and assets which stand transferred to Defendant Nos.1 to 4 since long has been made with gross delay and latches and thoroughly inadequate pleadings. Though Plaintiff has argued at length on the basis of Plaintiff's right as a coparcener in the properties belonging to the Gopal Raheja Group properties, it is Plaintiff's case that the apparent corporate structure in terms of shareholdings of Defendant Nos.7 to 32 is not the real structure and that the shares vest and belong collectively to the Gopal Raheja Group irrespective of in whose names the shares are shown to be held. However in my opinion Plaintiff has however not made out any prima facie case for arriving at the aforesaid conclusion whatsoever when admittedly the businesses have been transferred to Defendant Nos.1 to 4 by Plaintiff and Defendant No.5 since long.

42. Further it is seen that the entire case of Plaintiff is based on the 1995 - 1996 Family Arrangement and denial of the 1992 oral Family Arrangement propounded by the Defendant No.1 hence initial burden of proof will be on Plaintiff to prove that the 1995 - 1996 Family Arrangement is in

subsistence as on date of filing of the Suit NMS.1211.2014+.doc proceeding in the year 2014 and in doing so disprove the transfer of businesses and shareholdings to Defendant Nos.1 to 4 in the interregnum. It is only when this initial burden is satisfied by the Plaintiff that the burden will shift onto the Defendant No.1 to prove the 1992 oral Family Arrangement.

43. In the present case, it is seen that the dispute between Defendant No.1 and his father started for the first time in January 2012. There is a letter written by Gopal L. Raheja dated 11.01.2012 which is endorsed by Plaintiff and Defendant No.5 wherein it is acknowledged that Gopal L. Raheja, Plaintiff and Defendant No.5 had given Power of Attorneys to Defendant No.1 and they had sought to revoke the same. In response to this letter, Defendant No.1 by his reply dated 28.01.2012 gave a detailed response and referred to and relied upon the 1992 oral Family Arrangement, pursuant to which steps were taken by all Members of the Gopal L. Raheja family to transfer the shares and interest standing in the names of the Group Companies to Defendant Nos.1 to 4 over a period of time. In the subsequent letter addressed by Gopal L. Raheja dated 28.02.2012, the 1992 oral Family Arrangement has been denied by him.

44. From the record it is seen that during the interregnum as against the transfer of shares by Plaintiff and Defendant No.5 to Defendant Nos.1 to 4, Defendant Nos.1 to 4 have transferred NMS.1211.2014+.doc substantial assets reciprocally to Plaintiff and Defendant No.5. The details of these transfers are given in paragraph No.22(j) of the Affidavit-in-Reply dated 08.11.2014. In the Rejoinder, curiously, there is no denial whatsoever. Though it is sought to be argued by Plaintiff that they were mere gifts given to Plaintiff and Defendant No.5, this submission cannot be accepted on face value since Plaintiff has suppressed the same in the Suit Plaint.

45. In that view of the matter and the fact that in 2001 Gopal L. Raheja had transferred all his shareholdings held by him to the joint names of Defendant No.1 and himself including the shareholding of Gopal L. Raheja HUF between 2001 and 2007 and transfers of all shares and rights by Plaintiff and Defendant No.5 between 2005 - 2007, coupled with the fact that Plaintiff and Defendant No.5 received substantial consideration and gifts both movable and immovable which have been delineated in the Affidavit-in-Reply alluded to herein above as also the evidence Affidavit filed in Suit No.2363 of 2012, the case of the Plaintiff for interim reliefs as sought for in the present Notice of Motion cannot be acceded to by the Court. In the event if the Plaintiff's plea is considered, it will amount to grant of final reliefs at the interim stage without any semblance of a trial which cannot be allowed by the Court in the facts and circumstances of the present case discussed hereinabove.

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46. The dichotomy as to whether Gopal L. Raheja HUF referred to in 1995 - 1996 Family Arrangement is infact the same as the Gopal L Raheja Group or is the Group HUF is once again required to be first satisfied and proved by Plaintiff by stepping into the witness box and only thereafter the properties, assets and businesses of the Defendant - Companies listed in Exhibit 'B' to the Plaint can be said to be belonging to the Gopal L. Raheja HUF as coparcenary property can be considered for adjudication. The answer to the aforesaid questions is prima facie in the negative on

the basis of the material placed before the Court which is discussed hereinabove and merely on the basis of pleadings of the Plaintiff and submissions made across the bar the case of the Plaintiff on coparcenary right cannot be accepted at this stage for grant of substantive interim reliefs.

47. Further it is seen that except for a stray mention of Karta of HUF or joint family, there is nothing in the Plaint to suggest that the present Suit is one for partition of a HUF on prima facie reading of the Suit Plaint. A plain reading of the Plaint shows that it is not Plaintiff's case that either the 1987 Family Arrangement or the 1995 - 1996 Family Arrangement were in any manner a partition of the Lachmandas Raheja HUF or that the 1995 - 1996 Family Arrangement exhibited as Exhibits C1 to C4 vested the properties in the Gopal L. Raheja HUF. However to the contrary it is pleaded in the Suit Plaint that Gopal L. Raheja and his children constituted a Group in the 1995 -

NMS.1211.2014+.doc 1996 Family Arrangement and are entitled to an equal share as part of the contracting Group. If this be true, then reference to a non- coparcener namely Defendant No.2 and Gopal L. Raheja HUF in the 1995-1996 Family Arrangement is prima facie fatal to the case of Plaintiff when it is argued that the Suit is for partition of all assets and properties amongst Gopal L. Raheja family members comprising of Gopal L. Raheja, Plaintiff, Defendant No.1 and Defendant No.5 only.

48. It is prima facie seen and alluded to herein above that post the 1995 - 1996 Family Arrangement transfer of shares have taken in place in favour of various individual members namely Defendant Nos.1 to 4 from Plaintiff and Defendant No.5 and most importantly Gopal L. Raheja himself and thus Plaintiff has failed to make out any case for grant of interim reliefs at this stage.

49. Further case of Plaintiff that the shares were transferred inter alia to Defendant Nos.3 and 4 even though they were minors as fiduciaries and Trustees on the face of record cannot believed since Defendant Nos.3 and 4 were 8 years old and 4 years old when the transfer of shares took place in the year 2005 to them. On all the four counts namely prima facie case, balance of convenience, irreparable loss and conduct of the Plaintiff no prima facie case is made out by Plaintiff as to what are the assets of the HUF or as to whether the HUF existed and had if it did so then at what point of time. That apart the gross delay with which the Plaintiff has come to the Court militates NMS.1211.2014+.doc against the Plaintiff's case. Once it is seen that Plaintiff is neither a shareholder or Director of Defendant Nos.7 to 32 entities then unless and until the Plaintiff proves her case and succeeds in proving her case, her case cannot be considered to interfere and meddle with the operations of the Defendant - Companies / entities. There is no threat also to the Plaintiff's claim because the Companies are all going concerns and operating in the public domain either as Private Limited Companies and Limited Liability Partnerships.

50. Attention is drawn to the recent decision of the Division Bench of this Court in the case of Myra Philomena Collaco Vs. Lilian Coelho and Ors.81 and paragraph No.130 of the said decision which is relevant in the context of the dispute in the present proceedings wherein the Court has discussed the concept of one family which reads as under:-

> "130. In contemporary times, we often hear the famous phrase "Vasudhaiva Kutumbakam," meaning that the world is one family. However, cases such as the present one are classic examples of stark differences: disputes within families over property that show no end in sight and ultimately result in delayed litigation. This is a tendency that ought to be curtailed in larger societal interest. We conclude with this solemn and optimistic hope."

51. In view of my above observations and findings, Plaintiff is not entitled to any interim reliefs.

52. Notice of Motion is dismissed.

[MILIND N. JADHAV, J.] Ajay 81 Appeal No.574 of 2003 in TS No.33 of 1999 - Decided on 30.12.2025.

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